Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Date: 19/12/2025

PUNJAB NATIONAL BANK

Centralised Procurement and Partnership Division
Head Office, 5, Sansad Marg,
New Delhi - 110 001
Tel: (011) - 23724596

PUNJAB NATIONAL BANK

Invitation for Request for Proposal (RFP)

PNB invites proposals from reputed bidder for Supply, Implementation and Management of **Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM)**. This RFP may be downloaded by the bidders free of cost from the GeM Portal (www.gem.gov.in). All the documents and process related information are also published on the Bank's Website.

This RFP is not a recommendation, offer or invitation to enter into a contract, agreement or any other arrangement. The purpose of this RFP is to provide information to the potential Bidders, who qualify to submit the response to this RFP, and to assist them in responding to this RFP. Although this RFP has been prepared with sufficient care to provide all the required information to the potential Bidders, however, in the event any further/additional information is required by any potential bidders, such bidder(s) on its own cost & endeavour may approach the Bank for clarification which may be considered by the Bank.

The Bank reserves the right to provide such additional information at its sole discretion.

In order to respond to the RFP, if required, each Bidder may conduct its own study and analysis/assessment and seek its own professional, technical, financial and legal advice, as may be necessary. The Bank, its employees and advisors make no representation and shall have no liability to any person, including any Applicant or Bidder under any law, statute, rules or regulations or tort, principles of restitution or unjust enrichment or otherwise for any loss, damages, cost or expense which may arise from or be incurred or suffered on account of anything contained in this RFP or otherwise, including the accuracy, adequacy, correctness, completeness or reliability of the Tender and any assessment, assumption, statement or information contained therein or deemed to form or arising in any way for participation in this bidding process. The Bank also accepts no liability of any nature whether resulting from negligence or otherwise, howsoever caused arising from reliance of any Bidder upon the statements contained in this RFP.

The Bank reserves the right of discretion to change, modify, add to or alter any or all of the provisions of this RFP and/or the bidding process prior to deadline for submission of Bids, without assigning any reason whatsoever. Notification of amendments will be made available on the Bank's website at (www.pnb.bank.in) as well as GeM Portal. No separate communication will be issued in this regard.

The Bank, at its discretion, may extend the deadline for a reasonable period for the submission of Bids.

Common Terms of Reference / Definition

ABBREVIATIONS

PUNJAB NATIONAL BANK

The long form of some abbreviations commonly used in the document is given below:

S No.	Abbreviations	Description / Full form
1.	PNB	Punjab National Bank
2.	ATM	Automated Teller Machine
3.	AMC	Annual Maintenance Contract
4.	ATS	Annual Technical Support
5.	BFSI	Banking, Financial Services, and Insurance
6.	NMS	Network Monitoring Solution
7.	BG	Bank Guarantee
8.	PBG	Performance Bank Guarantee
9.	BoM	Bill of Material
10.	DD	Demand Draft
11.	EMD	Earnest Money Deposit
12.	OEM	Original Equipment Manufacturer
13.	GST	Goods and Service Tax
14.	HO	Head Office
15.	LD	Liquidated Damages
16.	MSE	Micro and Small Enterprises
17.	MSME	Micro Small Medium Enterprises
18.	NEFT	National Electronic Funds Transfer
19.	NI Act	Negotiable Instruments Act
20.	PSB	Public Sector Bank
21.	RTGS	Real Time Gross Settlement
22.	BCP	Business Continuity Planning
23.	CBS	Core Banking Solutions
24.	DC	Data Center
25.	DRS	Disaster Recovery Site
26.	ISO	International Organization for Standards
27.	NDA	Non-Disclosure Agreement
28.	PO	Purchase Order
29.	PSU	Public Sector Undertaking
30.	RFP	Request For Proposal. For all references, RFP shall mean the request for Proposal and its corrigendum issued, if any.
31.	RRB	Regional Rural Bank
32.	SLA	Service Level Agreement
33.	TCO	Total Cost of Ownership
34.	MDM	Mobile Device Management
35.	MAM	Mobile Application Management

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36.	SaaS	Software as a Service
37.	PoA	Power of Attorney
38.	ATC	Additional Terms and Conditions
39.	GeM	Government e Marketplace
40.	GoI	Government of India
41.	DPIIT	Department for Promotion of Industry and Internal Trade
42.	KVIC	Khadi and Village Industries Commission
43.	OSD	Original Software Developer
44.	TOT	Transfer of Technology
45.	RPL	Recognition of Prior Learning
46.	DPDP Act	Digital Personal Data Protection Act
47.	IT	Information Technology
48.	IS	Information Security
49.	ICT	Information and Communication Technology
50.	RA	Reverse Auction

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PART – A – GENERAL TERMS AND CONDITIONS

1.1 Introduction

Punjab National Bank is one of the leading nationalized Banks, headquartered in New Delhi. The Bank started its operations on 12th April 1895. Throughout the journey of more than 125 years of existence, the Bank has expanded its network across the country and marked its presence outside India and at present the Bank has more than 10,100 branches and 12000 ATMs (onsite and offsite) all over the country and various offices at Dubai, Bhutan, UK etc. The Bank has 22 Zonal Offices and 138 Circle Offices controlling these Branches/ ATMs besides specialized service branches, DC, DRS, training establishment and other offices. The Bank also has various Subsidiaries, Associates and Joint Ventures including 8 RRBs (Regional Rural Banks).

For further details, you can visit to Bank's website www.pnb.bank.in

1.2 Language of the Bid

The Bid prepared by the Bidder, as well as all correspondence and documents relating to the Bid exchanged by the Bidder and Bank shall be written in English language.

1.3 Contact to Bidders

Interested Bidders are requested to send their queries and representations, if any, related to the said tender, only on the below mentioned email IDs:

1. rajendra.mohan@pnb.bank.in
2. vishnu.prasad1@pnb.bank.in
3. saikrishna@pnb.bank.in

or the officials may be contacted on the following Contact Number: 011-2372 4596 from 10AM - 5PM on Bank's working days

Alternatively, any correspondence in writing maybe also be sent to the following address:

4. The Assistant General Manager
   Punjab National Bank,
   Processing Cell
   Centralized Procurement and Partnership Division,
   HO: 5 Sansad Marg,
   New Delhi 110 001

The communication sent should contain the containing following information of the Bidder, so that in case of any clarification the same may be share with them:

(a). Name of Bidder

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(b). Contact person
(c). Mailing address with Pin Code,
(d). Contact Number.
(e). e-mail etc.

Bidders shall contact/correspond/communicate only on the aforementioned contact details and any communication received on any other email-id/address and /or through any other mode/medium other than the one mentioned above, will not be attended.

1.4 Board Resolution Copy with Authorization Letter/ Power of Attorney

In case of company, a certified copy of the latest Board Resolution in favor of Authorized Person(s) with signature duly authorized by the Company Secretary/ Director along with validity of the authorization is to be submitted

In case the authorized person delegates authority to another person of the company, if there is specific clause permitting sub delegation, then Power of Attorney preferably in original (executed on stamp paper of appropriate value) with bid reference, showing that the signatory has been duly authorized to sign the Bid documents, Contracts, Agreements with the Bank on behalf of the company.

This is to be submitted for all the Bidder(s) and OEM(s) involved.

For OEMs: In case the OEM(s) is unable to submit the above document(s), Letter of Authorization as per **Annexure-13** issued by the Competent Authority of the Company is to be submitted.

1.5 Performance Bank Guarantee (PBG)

The successful bidder shall submit a performance Bank guarantee of 05% of the total project cost (awarded to the Bidder), within one month of acceptance of purchase order. The PBG should have validity of at least Sixty-Six (66) months with a claim period of additional 6 months. In case due to any reason, the validity of the PBG expires before the completion of the contract period, the same shall have to be extended by the Bidder with the same terms and conditions. In case Bank extends the contract, the PBG shall have to be extended till the period of extension with same terms and conditions.

The successful bidder has to submit the Performance Bank Guarantee (PBG), detailed as under:

1. The Performance Bank Guarantee will be furnished for due performance of the complete Solution/services.
2. The Performance Bank Guarantee shall act as a security deposit and either in case the Successful bidder is unable to start the project within the stipulated time, or the start of the project is delayed inordinately beyond the acceptable levels, the Bank reserves the right to forfeit the same.

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3. Further, the Bank reserves the right to invoke the Performance Bank Guarantee in case the Successful bidder is not able fulfil any or all material conditions specified in the Agreement or is unable to complete the project within the stipulated time.
4. In case successful bidder submits any false information or declaration letter during the tender process or period of contract, Bank shall invoke the EMD/ AND/OR Performance Bank Guarantee submitted by the bidder to recover penalty/damages. In case successful bidder fails to perform the contract / to comply with the terms and condition of RFP, Bank shall invoke the Performance Bank Guarantee to recover penalty/damages.
5. In case the contract is getting extended, the Vendor shall submit the Performance Bank Guarantee of the project cost (awarded to the Bidder) with duration of the PBG as the period of extension of the contract and claim validity of 3 months beyond the PBG expiry date. The Successful bidder shall be responsible for extending the validity date and claim period of Performance Bank Guarantee as and when it is due on the account of non-completion of the project.
6. No interest on PBG will be paid by Bank.

1.6 Bid Earnest Money/ Earnest Money Deposit (EMD)

Bidder/has to submit the Bid Earnest Money/EMD of Rs. 31,00,000/-(Rupees Thirty-One Lakhs only) (EMD) which should be submitted in the form of Insurance Surety Bonds, Account Payee Demand Draft, Fixed Deposit Receipt, Banker's Cheque or Bank Guarantee from any Scheduled Commercial Bank other than PNB or payment online in an acceptable form favouring PUNJAB NATIONAL BANK, CENTRALIZED PROCUREMENT AND PARTNERSHIP DIVISION New Delhi and filling all the details as per specified **Annexure-8**. The BG should have a validity of **at least 6 months from the date of submission of the bid with claim period of another 3 months**. The BG/ details of EMD should be submitted at the time of bid submission.

In case the EMD is in the form of Insurance Surety Bonds, Account Payee Demand Draft, Fixed Deposit Receipt, Banker's Cheque or Bank Guarantee, the same should be submitted in **Original** to the Bank within 5 working days of the bid submission date beyond which the bid shall be liable for rejection. The EMD proof should be mandatorily uploaded along with the bid documents failing which the bid shall be liable for rejection.

In case of unsuccessful bidder, EMD will be returned within 30 days of disqualification (Technically/Commercially) or within 30 days of completion of tender process, as the case will be and no interest will be payable on EMD amount. The EMD will be returned to the successful bidder upon submission of Performance Bank Guarantee, and no interest will be payable on EMD amount.

Following categories of bidders shall be exempted from furnishing EMD/BID Earnest Money deposit as per GoI and GeM guidelines:

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i. Micro and Small Enterprises (MSEs) who are holding valid Udyam Registration and are manufacturer of the offered Product or Service (Primary Product / Service - in case of bunch bid with total value wise evaluation) and give specific confirmation to this effect at the time of bid submission and claim EMD exemption and whose credentials are validated online through Udyam Registration website of Ministry of MSME and also through supporting document uploaded during bidding process and validated by the Buyer.

ii. Start-ups as recognized by Department for Promotion of Industry and Internal Trade (DPIIT), holding valid Startup Recognition Certificate which is to be uploaded while bidding and claiming EMD exemption and to be validated by the Buyer. Bidder to ensure that turnover for any of the financial years has not exceeded beyond limits prescribed in the certificate / Start Up scheme of DPIIT.

iii. KVIC, ACASH, WDO, Coir Board, TRIFED and Kendriya Bhandar.

iv. Sellers who have got their credentials verified through the process of Vendor Assessment by Vendor Assessment Agencies for the Primary Product / Primary Service for which Bid / RA has been invited and holding valid Vendor Assessment or Vendor Assessment Exemption Report / confirmation (Seller to upload VA report / VAE confirmation to be validated by the Buyer).

v. Sellers / Service Providers holding valid BIS License for the Primary Product Category whose credentials are validated through BIS database and through uploaded supporting documents to be validated by the buyer.

vi. Central / State PSUs.

vii. Seller / Service Provider registered with designated Agency / Authority as specified in the bid document by the Buyer – such bidder shall have to upload scanned copy of relevant valid registration document in place of Bid Security document while bidding.

Details for online payment:

Account Name: Punjab National Bank
IFSC: PUNB0001330
Account No. 9762002200000460 (16 digits) EMD account – HO CPPD Division
(Proof of the transaction to be submitted along with the bid documents).

1.7 Modification and /OR withdrawal of Bids

The Service Provider, after submitting the bid, is permitted to withdraw, substitute or modify the without forfeiture of Bid Security/ EMD, provided these are received, up to the date and time of receipt of the tender. Any such request received after the prescribed date and time of receipt of tenders will not be considered. No bid may be withdrawn in the interval between the deadline for submission of bids and expiration of the period of bid validity. Withdrawal of a bid during this period will result in forfeiture of the bidder's 's bid security (EMD) and other sanctions.

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1.8 Contacting the Bank or Putting Outside Influence

Bidders/Service Providers are forbidden to contact the Bank or its Consultants on any matter relating to this bid from the time of submission of commercial bid to the time the contract is awarded. Any effort on the part of the Service Provider to influence the bid evaluation process, or contract award decision may result in the rejection of the bid.

1.9 Revelation of Prices

The prices in any form or by any reason should not be disclosed in the technical or other parts of the bid except in the commercial bid and/ or Financial Document/Excel Upload on GeM. Failure to do so will make the bid liable to be rejected.

1.10 Terms and Conditions of the Bidding firms

The Bidder/Service Provider must accept all terms and conditions of the RFP and shall not impose any of its own conditions upon the Bank. A Bidder/Service Provider who does not accept any or all conditions of the RFP shall be disqualified from the selection process at any stage as deemed fit by the Bank. The Bank reserves its right to modify/add/delete any of the terms and condition of the RFP at any stage of the Bid. The Bidder/Service Provider agrees to be bound by the further modification/deletion/addition of any terms and conditions.

1.11 Local Conditions

The bidder must acquaint himself/themselves with the local conditions and factors, which may have any effect on the performance of the contract and / or the cost.

1.12 Terms and Conditions

1.12.1 Bank's right to accept or reject any Bid or all Bids.

The Bank reserves the right to accept or reject any bid and annul the bidding process or even reject all bids at any time prior to award of contract, without thereby incurring any liability to the affected bidder or bidders or without any obligation to inform the affected bidder or bidders about the grounds for the Bank 's action.

1.12.2 Service Level Agreement

The Bidder shall have to enter into an agreement with Bank as per the terms and conditions of this RFP and its subsequent Corrigendum/ Corrigenda.

The non-delivery of services or non-response or any breach of information will lead to penalty. The penalty is applicable in respect of non-delivery of services/ support as per the requirement of this RFP.

Within **30 days** of receipt of the Order/Letter of Intent, the selected Bidder shall sign the Service Level Agreement (SLA), on stamp paper of appropriate value, in format of the Bank and return it to Bank. The Bidder, however, may submit the SLA Form they like to execute. It is prerogative of the Bank to accept the same or to modify. It is reiterated that the Contract/SLA to be entered into by the Selected Bidder shall be as approved by the Bank

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only. Bidder shall be bound by the Service Levels described in this document. The SLA will be monitored and reviewed on monthly basis.

1.12.3 Opening of Bids

The Date, time and location of bid opening is as published on GeM. Bidders need to check the details on GeM for any change in Date/time of bid opening. In the event of the specified date of bid opening being declared a holiday for the Bank, the bids shall be opened at the specified time and place on next working day.

1.12.4 Clarification of Bids

To assist in the examination, evaluation and comparison of bids the Bank may, at its discretion, ask the bidder for clarification and response shall be submitted in writing, duly signed & stamped by the authorized signatory and no change in the price or substance of the bid shall be sought, offered or permitted. The clarification and response received from bidder will be subsequently part of bid submitted by that bidder.

1.12.5 Authentication of Erasures/ Overwriting etc.

Any inter-lineation, erasures or overwriting shall not be valid, and it will lead to rejection of bid without quoting any reason.

1.12.6 Arithmetical errors

Arithmetical errors will be rectified as follows:

a. If, in the price structure quoted for the required goods, there is a discrepancy between the unit price and total price (which is obtained by multiplying the unit price by the quantity), the unit price shall prevail, and the total price corrected accordingly.
b. If there is an error in a total corresponding to the addition or subtraction of sub-totals, the sub-totals shall prevail, and the total shall be corrected.
c. If there is a discrepancy between words and figures, the amount in words shall prevail
d. Such a discrepancy in an offer should be conveyed to the bidder, asking him to respond by a target date. If the bidder does not agree to the Procuring Entity's observation, the bid is liable to be rejected

1.12.7 Bid currency

Prices shall be expressed in Indian Rupees only.

1.12.8 Validity of Contract in Case of Amalgamation/Merger/Acquisition of The Bank

The contract shall remain valid in case of amalgamation/ merger/ acquisition of the Bank with any other entity or vice-verse. In case of change of name of the new entity prior to the execution of SLA and all necessary agreements/ documents, the SLA shall have to be signed with the new entity with the same rates, terms and conditions as per the existing contract.

1.13 Additional Terms and Conditions

The Following additional terms and conditions shall apply to the evaluation process:

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1.13.1 Procurement through Local Suppliers (Make in India)

Procurement through Local Supplier (Preference to Make in India) will be done as per the "Public Procurement (Preference to Make in India) Order 2017 issued vide Department of Industrial Policy and Promotion (DIPP) Notification No. P-45021/2/2017-B.E-II dated 15.06.2017 and thereafter revised vide Notification No. P-45021/2/2017-PP (B.E-II) dated: 28.05.2018, No. P-45021/2/2017-PP(BE-II) dated 04.06.2020 & No. P-45021/2/2017-PP(BE-II) dated 16.09.2020, P-45021/2/2017-PP (BE-II)-Part (4)Vol II dated 19.07.2024 and further revisions, if any. bidder to refer Notification No. F.No.33(1)/2017-IPHW dt:14.09.2017 for the list of Electronic Products that are notified under the Public Procurement (Preference to Make in India) Order 2017 and CG-DL-E-22102024-258138 F. No. 18-10/2017-IP dated 21.10.2024 for the list of notified Telecom Items by Ministry of Communications, Department of Telecommunications. Bidder shall ensure compliance to the same while quoting the products, services, works and throughout the contract period.

The guidelines under PPP-MII order and subsequent revisions as mentioned above shall be applicable subject to bidder submitting with Class-I/Class-II local content certificate for the quoted product, services and works.

The 'Class-I local supplier'/ 'Class-II local supplier' at the time of tender, bidding or solicitation shall be required to indicate percentage of local content and provide self-certification that the item offered meets the local content requirement for 'Class-I local supplier'/ 'Class-II local supplier', as the case may be. They shall also give details of the location(s) at which the local value addition is made. In cases of procurement for a value in excess of Rs. 10 crores, the 'Class-I local supplier'/ 'Class-II local supplier' shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content, details of the location(s) at which the local value addition is made, etc.

1.13.2 Purchase Preference to MSE

Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the product and/or service offered. Purchase preference shall be applicable to all registered MSE as per Govt. of India guidelines.

1.13.3 Cancellation of Bid/ Bidding Process

Bank reserves the right to accept or reject any/all bid or annul the bidding process at any time prior to award of contract, without thereby incurring any liability to the affected bidder

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or bidders or any obligation to inform the affected bidder or bidders of the ground for its action.

1.13.4 Land Border Clause

i. Any bidder (including their subcontractor, if any), OEM, OSD from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority. Further, any bidder (including bidder from India) having specified Transfer of Technology (TOT) arrangement with an entity from a country which shares a land border with India, shall also require to be registered with the same Competent Authority. The Competent Authority for the purpose of registration under this Order shall be the Registration Committee constituted by the Govt. of India, Department for Promotion of Industry and Internal Trade (DPIIT). Applicable certificates shall have to be submitted for compliance.

ii. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

iii. "Bidder (or entity) from a country which shares a land border with India" for the purpose of this Order means: -

a) An entity incorporated, established or registered in such a country; or

b) A subsidiary of an entity incorporated, established or registered in such a country; or

c) An entity substantially controlled through entities incorporated, established or registered in such a country; or

d) An entity whose beneficial owner is situated in such a country; or

e) An Indian (or other) agent of such an entity; or

f) A natural person who is a citizen of such a country; or

g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above

iv. The beneficial owner for the purpose of (iii) above will be as under:

a) In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

Explanation: -

i. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent. of shares or capital or profits of the company;

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ii. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

b) In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

c) In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

d) Where no natural person is identified under (a) or (b) or (c) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

e) In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

v. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.

vi. [To be inserted in tenders for Works contracts, including Turnkey contracts] The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority. Model Certificate for Tenders (for transitional cases as stated in para 3 of this Order).

vii. The registration should be valid at the time of submission of bid and at the time of acceptance of bid.

viii. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution

1.13.5 Recognition of Prior Learning

For the onsite resources: - It is mandatory requirement of formally certified skilled workforce or commitment by the bidder's/ service providers to the effect that they would ensure that all their workers would be skilled through Recognition of Prior Learning (RPL) within two months from the date of commencement of work under the project, at the cost of the bidder/vendor.

1.13.6 Indemnity

1. Successful bidder assumes responsibility for and shall indemnify and keep the Bank harmless from all liabilities, claims, costs, expenses, taxes and assessments

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including penalties, punitive damages, attorney's fees and court costs which are or may be required to be paid by reasons of any breach of the Successful bidder's obligations under (a) this RFP/Agreement for which the Bidder has assumed responsibilities including those imposed under any Agreement, (b) local or national law or laws, or (c) in respect to all salaries, wages or other compensation to all persons employed/hired/deployed/services utilised by the Successful bidder in connection with the performance/discharge of its obligations under this Agreement. The Successful bidder shall execute, deliver such other further instruments to comply with all the requirements of such laws and regulations as may be necessary there under to conform and effectuate the terms of this Agreement and to protect the Bank during the tenure of the Agreement.

2. Where any patent, trademark, registered design, copyrights and/ or intellectual property rights vest in a third party, the Successful bidder shall be liable for settling with such third party and paying any license fee, royalty and/ or compensation thereon. In the event of any third party raising claim or bringing action against the Bank including but not limited to action for injunction in connection with any rights affecting the machine/licenses/services supplied/rendered by the Successful bidder under this Agreement or uses thereof, the Successful bidder agrees and undertakes to defend and / or to assist the Bank in defending, if Bank in its discretion so decides, at the Successful bidder's cost against such third party's claim and / or actions and against any law suits of any kind initiated against the Bank.
3. Successful bidder further agrees that it shall, at its own expense, defend or cause to be defended or, at its option, settle any claim or action ("Claim") brought against the Bank by a third party alleging that the use of the Licensed Material by the Bank infringes any Intellectual Property Rights of that third party. Subject to the other conditions of this section, Successful bidder shall pay any compromise, settlement or judgment entered against the Bank with respect to any Claim and fully indemnify the Bank in respect of all costs and expenses relating to the Claim provided that the Bank notifies Successful bidder in writing of the Claim immediately on becoming aware of it.
4. No settlement of claim shall be deemed to be an admission of any liability by the Bank for the infringement alleged.
5. If any Licensed Material becomes the subject of any Claim or if a court judgment is made that any Licensed Material does infringe, or if the use of licensing of any part of any Licensed Material is restricted, Vendor at its option and expense shall:
   a. Obtain for the Bank the right to continue to use the Licensed Material.
   b. Replace or modify the Licensed Material so that it becomes non-infringing.
   c. If none of the above (a) or (b) is possible, return the entire consideration received from the Bank for the Licensed Material on a pro rata portion basis.
6. The terms of this clause shall survive the termination of this Agreement.

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1.13.7 Indemnification Process:

Bank shall notify the Bidder/ Vendor in writing as soon as practicable when the Bank becomes aware of the claim and cooperates with the Bidder/ Vendor in the defence and settlement of the claims.

The Bidder/Vendor shall have sole control of the defence and all related settlement/negotiations, and Bank will provide the Bidder/ Vendor with the assistance, information and authority reasonably necessary to perform the above. However, where Bank is required under law or otherwise answer the claims/charges/imputations made against it, Bank shall have the right to enter defence/defend its interest by means available in law, at its sole discretion. Indemnity would cover damages, loss or liabilities suffered by the Banks arising out of claims made by regulatory authorities for reasons attributable to breach of obligations under the above stated Request for Proposal (RFP) and/or this SLA and subsequent agreement, if any by the Bidder/ Vendor.

In the event of Bidder/ Vendor does not fulfil its obligations under this clause (that is, to comply with the indemnification process) within the period specified in the indemnification notice issued by Bank, Bank has the right to recover the amounts due to it under this provision from any amount payable to the Bidder/ Vendor under this project.

The indemnities under this clause are in addition to and without prejudice to the indemnities given elsewhere in this Agreement.

1.13.8 IP Infringement Indemnity:

The Bidder shall indemnify the Bank against all third-party claims of infringement of trademark, copyright or industrial design rights, etc. (excepting any third party's patent) arising from use of the Deliverables/ Services, or any part thereof in India as contemplated by this Agreement, provided always that Bank's use of such Services and Deliverables is in compliance with the Agreement and applicable laws. If Bank's compliant use of the Services or Deliverables infringes any third party IPR, Bank's sole remedy (other than this indemnity) is for Bidder, at Bidder's option, to either: (i) procure Bank's continued full use of the Deliverable as contemplated by the Agreement; (ii) substitute the infringing Deliverable; or (iii) modify the Deliverable so that they become non-infringing. This remedy will not apply if Bank is using any modified version of a Deliverable that was not approved by Bidder; if Bank uses Deliverables for a purpose other than that contemplated by the Agreement or if Bank uses a Deliverable in a manner not compliant with the Agreement. Bank will use all reasonable endeavors to mitigate its Losses, arising out of any third party IPR claim.

Bidder further agrees that it shall, at its own expense, defend or cause to be defended or, at its option, settle any claim or action ("Claim") brought against the Bank by a third party alleging that the use of the Deliverable by the Bank infringes any Intellectual Property Rights of that third party. Subject to the other conditions of this section or section 6 above, Bidder shall pay any compromise, settlement or judgment entered against the Bank with

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respect to any Claim and fully indemnify the Bank in respect of all costs and expenses relating to the Claim provided that the Bank notifies Bidder in writing of the Claim immediately on becoming aware of it.

1.13.9 Incidental Services

The successful bidder shall be required to provide all the following services, including additional service, if any relating to:

I. Performance or supervision of on-site assembly and /or start-up of the goods/ services.
II. furnishing of detailed operations, SOP and maintenance manual for each unit of the goods/ services:
III. Training of the Bank's personnel on-site, start-up, maintenance, and / or repair of goods/ services; if applicable, without any additional cost to the Bank.

1.13.10 Patent Rights

The bidder/supplier shall indemnify the Bank against all third-party claims of infringement of patent, trademark or industrial design rights arising from use of the Goods, or any part thereof in India.

1. The bidder/supplier shall, at their own expense, defend and indemnify the Bank against all third-party claims or infringement of intellectual Property Right, including Patent, trademark, copyright, trade secret or industrial design rights arising from use of the products or any part thereof in India or abroad.
2. The bidder/supplier shall expeditiously extinguish any such claims and shall have full rights to defend it there from. If the Bank is required to pay compensation to a third party resulting from such infringement, the supplier shall be fully responsible including all expenses and court and legal fees.
3. The Bank will give notice to the bidder/Supplier of any such claim without delay, provide reasonable assistance to the Supplier in disposing of the claim, and shall at no time admit to any liability for or express any intent to settle the claim.
4. The bidder/Supplier shall grant to the Bank a fully paid-up, irrevocable, non-exclusive license throughout the territory of India or abroad to access, replicate and use software (and other software items) provided by the supplier, including-all inventions, designs and marks embodied therein in perpetuity.

1.13.11 Governing Laws and Disputes

All disputes or differences whatsoever arising between the Parties out of or in relation to the construction, meaning and operation or effect of the RFP Documents/PO/SLA or breach thereof shall be settled amicably. If, however, the Parties are not able to solve them amicably, the same shall be settled by arbitration in accordance with Arbitration and Conciliation Act, 1996. The matter may be referred to a Sole Arbitrator to be appointed mutually by the parties and the award made in pursuance thereof shall be binding on the Parties. If the Bank and vendor fails to appoint sole arbitrator mutually, then the arbitrator

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shall be appointed in accordance with the Arbitration and Conciliation Act-1996. Any matter relating to or incidental to arbitration will be subject to the exclusive jurisdiction of courts at Delhi only.

The Bidder/Service Provider shall continue to work under the Contract during the arbitration proceedings unless otherwise directed in writing by the Bank or unless the matter is such that the work cannot possibly be continued until the decision of the arbitrator or the umpire, as the case may be, is obtained. However, during such a contingency, the Bank shall be entitled to make alternative arrangements to tackle the situation in any manner it deems fit, at the cost of the Service Provider/vendor which may also be adjusted by the Bank from the Performance Bank Guarantee, being treated as default so that the business of the Bank is not disrupted.

The venue of the arbitration shall be Delhi, and the language of the arbitration will be English.

The provisions of this Agreement shall be governed by the laws of India and shall be subject to the exclusive jurisdiction of courts in Delhi only.

1.13.12 Non-Solicitation

The Vendor shall not hire employees of the Bank or solicit or accept solicitation (either directly, indirectly, or through a third party) from employees or ex-employees of the Bank directly involved in this Agreement, during the term of this Agreement and one (1) year thereafter, except as the parties may agree on a case-by-case basis.

The parties agree that for the period of the contract and one year thereafter, neither party will cause or permit any of its directors or employees who have knowledge of the contract to directly or indirectly solicit for employment the key personnel working on the project contemplated in this proposal except with the written consent of the other party.

However, nothing contained herein shall restrict the Bank to engage any personnel/employee of Vendor, if the engagement is through open channel/competitive route in pursuance of Bank's hiring policies or direction of Government Authorities and does not include only the personnel/employees of Vendor.

1.13.13 Termination of Contract

1. The Bank shall have the right to terminate/cancel the contract with the vendor at any time during the contract period, after giving of 30 days' advance notice including 15 days curing period, for any valid reason, including but not limited to the following:
    a. Non-capable resources or non-initiation of services as per RFP timelines.
    b. Delay in execution of order placed by the Bank.
    c. Discrepancies / deviations in the agreed processes and/or products.
    d. Failure of Vendor to complete implementation of appliance within the time as specified in the Purchase Order/under this Agreement.

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e. Violation of terms & conditions stipulated in the Purchase Order to the extent not inconsistent with the terms and conditions laid out in Agreement.
f. In case of data breach, security breach, breach of trust, denial of service, service unavailability, change of Bidder's ownership, liquidation, merger, acquisition, undesirable changes due to change in regulatory requirement affecting the Bidder, regulatory action on Bidder, etc.
g. Change in Bank Policy.
h. Unsatisfactory services/poor quality of product/services.
i. The Bank may terminate the Agreement in case of breach of any of the representation and warranties as mentioned in this Agreement or in case of breach of any of the terms and condition as set forth in the Agreement.
j. The Bidder/ vendor unable to pay its debt as they fall due or otherwise enters into any composition or arrangement with or for the benefit of its creditors or any class thereof;
k. A liquidator or a receiver is appointed over all or a substantial part of the undertaking, assets or revenues of the Bidder/ vendor and such appointment continues for a period of twenty-one (21) days;.

2. Notwithstanding anything contained in this Agreement, Bank shall be at the liberty to terminate this Agreement at any time by sending 30 days - notice period to the Vendor without bearing any consequences.

3. Immediately upon the date of expiry or Termination of this Agreement, Bank shall have no further obligation to pay any amount for any periods commencing on or after such date.

4. In the event of Termination on account of failure of the Vendor to perform the obligations under this Agreement, the Bank shall have the right to invoke the Performance Bank Guarantee(s)/Security(s) given by the Vendor.

5. In case of termination due to reasons attributable to the vendor as decided by the Bank, Bank reserves the right to allot the remaining work to another Vendor of its choice on such terms and conditions as it may deem fit. Any financial liability including costs, charges, expenses which the Bank incurs on this account, shall be payable by the Vendor.

6. The Bank reserves the right to recover any dues payable to the selected vendor from any amount outstanding to the credit of the vendor, including pending bills and/or by invoking Bank Guarantee, if any, under this contract or any other contract/order.

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7. Before expiry / Termination of the Agreement, vendor shall be responsible to provide a smooth transition plan including all efforts for transfer/assignment of service contracts for uninterrupted continuation of services contemplated under this Agreement.

8. In the event of commencement of liquidation or winding-up (whether voluntary or compulsory or subject of a court order for its winding up) of the vendor or appointment of a receiver or manager of any of the vendor's assets and/or insolvency of the vendor.

9. Distress, execution, or other legal process being levied on or upon any of the vendor's goods and / or assets.

10. If the vendor shall assign or attempt to assign his interest or any part thereof in the contract. Bank will not pay any additional amount after surrendering.

Notwithstanding above, in case of change of statutory laws which affect the main objective of this Agreement, Bank reserve the right to terminate this Agreement or any subsequent amendment and / or any particular order, in whole or in part by giving Bidder/ vendor at least thirty (30) days' prior notice in writing.

The Bidder/ vendor understands the largeness of this Project and that it would require tremendous commitment of financial and technical resources for the same from the Bidder/ vendor for the tenure of this contract and subsequent Agreement. The Parties therefore agree and undertake that an exit at any point in time resulting due to expiry or termination of this Agreement and subsequent agreement for any reason whatsoever would be a process over a period of six (6) months, after the completion of the notice period of three (3) months. During this period, the Bidder/ vendor shall continue to provide the Deliverables and the services in accordance with this Agreement and subsequent amendment and shall maintain the agreed Service levels. Immediately upon the date of expiration or termination of this Agreement, if any, Bank shall have no further obligation to pay any fees for any periods commencing on or after such date.

Without prejudice to the rights of the Parties, upon termination or expiry of this Agreement or subsequent amendment, if any, Bank shall pay to Bidder/ vendor, within thirty (30) days of such termination or expiry of the following:

a. All the undisputed fees outstanding till the date of termination or upon the termination or expiry of subsequent Agreement.
b. The rights granted to Bidder/ vendor shall immediately terminate.

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The Bank shall provide the Bidder/ vendor a remedy period of thirty (30) days to rectify a material default. The Bank will provide in writing the nature of the default to the Bidder/ vendor through a letter or mail correspondence. The thirty (30) days time period shall commence from the day the Bank have sent such correspondence to the Bidder/ vendor.

11. In case of termination of contract, the Bank shall immediately take possession and control of all documents, record of transactions, information and assets and also reserves its right to destroy the data, hardware and all records (digital and physical) relevant to the service being provided by the Bidder. The Bank reserves the right to purge Banks information from Bidder's access.

12. The bidder shall, in case of termination of contract, ensure all data, information, processes, logs, etc. complete in all respects are ported in a secure transition to the Bank.

1.13.14 Privacy & Security Safeguards

The Bidder shall not publish or disclose to third parties in any manner, without the Banks' prior written consent, the details of any security safeguards designed, developed, or implemented by the Bidder or existing at any Bank location. The Bidder shall develop procedures, and implementation plans to ensure that IT resources leaving the control the assigned user (such as being reassigned, removed for repair, replaced, or upgraded). The Bidder shall also ensure that all subcontractors who are involved in providing such security safeguards or part of it shall not publish or disclose in any manner, without the Banks' prior written consent, the details of any security safeguards designed, developed, or implemented by the Bidder or existing at any Bank location.

1.13.15 Business Continuity Plan

The bidder shall ensure to have effective business continuity and disaster recovery plan. The bidder shall develop and establish a robust framework for documenting, maintaining and periodic testing of business continuity and recovery procedures and shall maintain a record of the same as per applicable law.

1.13.16 Data Protection

Bidder will process Bank's personal data on Bank's behalf as part of the Services, bidder shall ensure compliance to Data Security, Data Secrecy, Data privacy related issues and comply with the Information Technology Act, 2000, Digital Personal Data Protection Act 2023, and shall comply with all applicable privacy and data protection provisions and applicable laws / future laws/ laws enforced from time to time. Further, it must be ensured that due care be taken while collecting and dealing with sensitive personal data or information.

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Any Web portal used by the bidder to procure Bank Data will be secured to avoid hacking, infusion of virus, unauthorized copying, tampering, etc. and all sort of security required as per applicable law & practices to be adopted and implemented by the bidder

1.13.17 Conflict of Interest

A bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti-competitive practices to the detriment of Bank's interests. The bidder found to have a conflict of interest shall be disqualified. A bidder may be considered to have a conflict of interest with one or more parties in this bidding process, including but not limited to, if:

1. they have controlling partner (s) in common; or
2. they receive or have received any direct or indirect subsidy/ financial stake from any of them; or
3. they have the same legal representative/agent for purposes of this bid; or
4. they have relationship with each other, directly or through common third parties, which puts them in a position to have access to information about or influence on the bid of another Bidder; or
5. Bidder participates in more than one bid in this bidding process. Participation by a Bidder in more than one Bid will result in the disqualification of all bids in which the parties are involved. However, this does not limit the inclusion of the components/ sub-assembly/ Assemblies from one bidding manufacturer in more than one bid.
6. Bidder or any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the Bid.

1.13.18 Use of Name/Logo of the Bank

Vendor shall not use for publicity, promotion, or otherwise, any logo, name, trade name, service mark, or trademark or any simulation, abbreviation, or adaptation of the same of the Punjab National Bank or any of its affiliate, or the name of any Bank's employee or agent, without Bank's prior, written, express consent. The Bank may withhold such consent, in case so granted by it, in its absolute discretion. Violation thereof shall constitute a material breach of the terms of this RFP and shall entitle the Bank to take appropriate actions as available to it in law and this document.

1.13.19 Entire Agreement

This RFP/Agreement contains the entire Agreement and understandings by and between the Parties with respect to the covenants herein described, and no representations, promises, Agreements or understandings, written or oral, not herein contained shall be of any force or effect.

1.13.20 Assignment

The Bidder /vendor shall not assign, in whole or in part, its obligations to perform under the RFP/contract/SLA, except with the Bank's prior written consent.

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1.13.21 Non-Exclusivity

Notwithstanding anything contained in the present document, the arrangement hereby agreed between the parties, shall be on a non-exclusive basis. Bank reserves its right to appoint/engage one or more service provider(s) to provide like services concurrently or otherwise during the currency of contract.

1.13.22 Delay in Vendor Performance

Delivery of the goods and performance of the Services shall be made by the vendor in accordance with the time schedule specified by Bank. Any delay in performing the obligation by the supplier will result in imposition of liquidated damages and/or termination of rate contract for default.

1.13.23 Notices and other Communications

The notices shall be sent, in writing and signed by the competent authority, either personally or by certified or registered post with acknowledgement due or overnight courier or email duly transmitted, facsimile/fax transmission (with hard copy to follow for email/fax), addressed to the other Party at the addresses, email and fax number given in the contract.

Notices shall be deemed to be served upon the parties only on receipt, except when it is sent through the registered post and same shall be deemed to be delivered within five (05) working days (excluding Sundays and public holidays) after the date of mailing dispatch and in case the communication is made by facsimile transmission or email, on business date immediately after the date of successful facsimile/email transmission (that is, the sender has a hard copy of a Consultation page evidencing that the facsimile was completed in full to the correct fax number or email sent to correct email address).

Any Party may change the address, email address and fax number to which notices are to be sent to it, by providing written notice to the other Party in one of the manners provided herein.

1.13.24 Audit

All records with respect to any matters covered under this RFP/SLA shall be made available to auditors and or inspecting officials of the Bank and/or Reserve Bank of India and/or any regulatory authority, at any time during normal business hours, as often as the Bank deems necessary, to audit, examine, and make excerpts or transcripts of all relevant data. The said records are subject to examination. The scope of such audit would be limited to Service Levels being covered under the contract, and financial information would be excluded from such inspection, which will be subject to the requirements of statutory and regulatory authorities.

Bank can conduct any third-party inspection/audit for any phase of the contract and successful bidder must take all necessary changes as mentioned by the results of these audit. Bank will incur the cost of appointment of a third-party audit and successful bidder must ensure that findings of the audit are successfully closed by successful bidder within mutually agreed timelines.

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Vendor shall allow the Bank, its authorized personnel, its auditors (internal and external) and/or other statutory authorities an unrestricted right to inspect and audit the operations and records directly related to the services. The Cost and Accounting records will be out of the scope for the purpose of audit conducted by the Bank. If Vendor is outsourcing any portion of the above activity, it will be the responsibility of Vendor to ensure that authorities/officials as mentioned above are allowed access to places, systems, processes, records (except Cost and Accounting records) etc. of activity for inspection or verification.

Vendor shall keep complete and accurate records of all the operations in connection with the activities, per relevant best practices in the industry. All books, records (except Cost and accounting records) and information relevant to services shall be preserved in isolation and presented to the Bank or its designees for inspections as and when demanded.

Vendor recognizes the right of Government of India (GOI), Reserve Bank of India (RBI) and / or any regulatory authority to cause an inspection to be made of Vendor/Service Provider and its books and accounts by one or more of its officers or employees or other designated person. One week's prior intimation shall be shared with Vendor, regarding the audit so as to notify the Bank of any potential conflict of interest. Except in cases of regulatory or statutory audit, the Bank shall not exercise right to audit more than twice in a financial year.

Outsourcing agreement shall also include clause to recognize the right of the Reserve Bank to cause an inspection to be made of a service provider of a Bank and its books and account by one or more of its officers or employees or other persons.

The outsourcing agreement shall provide for the preservation of documents and data by the service provider in accordance with the legal/regulatory obligation of the Bank in this regard.

1.13.25 Survival

The Parties have expressly agreed that any liabilities or obligations set forth in this Agreement by their nature and content are intended to survive the performance hereof, shall so survive despite such completion/expiration or termination of this Agreement.

1.13.26 Severability

The clauses of this Agreement shall be deemed severable, and the invalidity or unenforceability of any provision (or part thereof) of this Agreement shall in no way affect the validity or enforceability of any other provision (or remaining part thereof).

1.13.27 Amendment

This Service Level Agreement (SLA) shall not be altered or modified except by a written Agreement or addendum signed by duly authorized representatives of the Parties.

1.13.28 Intellectual Property Rights

1. The Vendor claims and represents that it has obtained all the appropriate rights to provide the Deliverables upon the terms and conditions contained in this contract.

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The Bank agrees and acknowledges that save as expressly provided in this agreement, all Intellectual Property Rights in relation to the Software, Services and Documentation and any adaptations, translations and derivative works thereof, whether protectable as a copyright, trade mark, patent, trade secret design or otherwise, provided by the Vendor during, in connection with or in relation to fulfilling its obligations under this contract belong to and shall remain a property of the Vendor or its licensor.

2. Bank Data: Bank owns the original data or information, in any form, that is provided to Bidder by or on behalf of Bank (including Bank's personal data) ("Bank Data"). Except for the rights expressly granted in the Agreement, all rights, title and interest in and to any and all proprietary rights in Bank Data will remain with and be the exclusive property of Bank. Bank provides Bidder an appropriate license to use/ process the Bank Data only for the purpose of the Agreement and solely as required to provide the Services and Deliverables. Bank will obtain all rights necessary and permissions relevant or necessary for such purposes, and to the extent required, notify any individuals or entity who own or have an interest in Bank Data, to ensure that Bidder can access and use Bank Data for the purposes of the Agreement. Bank acknowledges and agrees that Bidder may use and upload Bank Data to a secure cloud-based solution and/or cloud-based file storage and sharing solutions when providing Services to Bank.
3. Third Party Materials. – Third-Party Material(s)" means any third-party content, including networks, equipment, data, managed services, hosted platforms, hardware, software, free software or freeware, and open-source software and other technology or services developed, owned, provided or licensed by a third party, other than Bank and/or Bidder
4. The Bank under this Agreement shall be granted a license to use the Software. During the term of this project and, if applicable, during the Reverse Transition Period, Bank grants Vendor a right to use at no cost or charge the Software licensed to the Bank, solely for the purpose of providing the Services.
5. The Vendor shall be responsible for obtaining all necessary authorizations and consents from third party licensors of Software used by Vendor in performing its obligations under this Project.
6. If a third party's claim endangers or disrupts the Bank's use of the Software, the Vendor shall at no further expense, charge, fees or costs to the Bank, (i) obtain a license so that the Bank may continue use of the Software in accordance with the terms of this contract and the license agreement; or (ii) modify the Software without affecting the functionality of the Software in any manner so as to avoid the infringement; or (iii) replace the Software with a compatible, functionally equivalent and non-infringing product.
7. Bidder agrees, to the extent permitted by the applicable third party, to assign or transfer the license related to Third-Party Material incorporated into Deliverables

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1.13.29 Confidential Information

1. Except as required by law, the parties shall ensure that all the confidential information- business or otherwise as disclosed by one party to other/s during negotiation/ implementation/execution of this Agreement or which may in any manner by any of its officers comes into the other party's knowledge or possession or control, shall not be used for any purposes other than those required or permitted by this Agreement and shall remain confidential and shall not be disclosed to any other party (including a subcontractor) except insofar as may be required for the proper implementation of this Agreement or permitted by other party expressly in writing.

2. For the purposes of this Agreement, information relating to the Bank's business, of its customers/employees, business systems, business processes, policies, internal notes, third party correspondences and documents shared in confidence or in respect of which no express permission has been obtained from Recipient by Disclosing Party, supplier lists or any other information having potential bearing on its business, trade, standing or reputation, information affecting employee's or an office bearer's right to privacy or proprietary information as defined hereinafter shall be deemed to be confidential information. For the purposes of this clause, Proprietary Information shall include, but not be limited to, domain names, trade secrets- whether or not protected under any patent or copy right or other intellectual property laws- whether contained on computer hard disks or floppy diskettes or otherwise available in any oral, scripted or photographic or electronic form- without any limitation whatsoever, copyrights, business ideas, techniques, know-how, inventions (whether patentable or not), any other information of any type relating to designs, configurations, information concerning technical or financial aspects, intellectual property rights, documentation, policies, board notes, circulars, letters including correspondences received or exchanged via electronic or web-based mediums in confidence, recorded data, schematics, layouts, source code, master works, master databases, algorithms, flow charts, formulae, works of authorship, mechanisms, research, manufacture, improvements, assembly, installation, the information concerning the Parties' actual or anticipated business, research or development, or the information which is received in confidence by the disclosing party to the Recipient. It is further agreed that the information relating to the Bank and its customers is deemed confidential whether marked confidential or not.

3. Notwithstanding the foregoing, any information which orally or visually or in writing is disclosed to the recipient by the Disclosing Party shall be deemed to be Confidential Information, if the disclosing party, within 10 (ten) days after such disclosure, sends to the Recipient a written document or documents describing such Proprietary Information and referencing the place and date of such oral, visual or

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written disclosure and the names of the employees or officers of the Recipient to whom such disclosure was made.

4. Vendor agrees to regard and preserve as confidential all information related to the business and other activities of the Bank, its customers, suppliers and other entities with whom Bank is presently or in future may enter into business, as may be obtained by Vendor or may be developed as a result of this Agreement. Vendor agrees to hold such information in trust and complete confidence for Bank and not to disclose such information to any person, firm or enterprise or use (directly or indirectly) any such information for its own benefit or the benefit of any other party, unless expressly authorized by Bank in writing, and further agrees to limit access to and disclosure of such confidential information to Vendor's employees on a strictly "need to know" basis only and who have signed or are bound by confidentiality agreements/undertakings at least as stringent as those contained herein. Vendor shall not without the consent of Bank make use of any document or reproduce in any way the information which it may come to know or have, except for the purpose of performance of this Agreement.

5. The Vendor agrees to protect the confidential information of the Bank with the same standard of care and procedures used by it to protect its own confidential Information. Without limitation of the foregoing, the Vendor shall use reasonable efforts to advise the Bank immediately in the event Vendor learns or has reason to believe that any person who has had access to confidential information has violated or intends to violate the terms of the Agreement and shall reasonably cooperate in seeking injunctive relieve against any such person.

6. That if the Vendor hires another person to assist it in the performance of its obligations under the terms of this SLA/Agreement, or assigns any portion of its rights or delegates any portion of its responsibilities or obligations under the Agreement to another person in any manner, it shall cause its assignee or delegate to be bound to retain the confidentiality of the confidential information in the same manner as the Vendor is bound to maintain the confidentiality.

7. Even if a Vendor's employee leaves the job or his services are terminated/expires, the Vendor shall ensure that he does not share any confidential information of the Bank with third parties nor uses such it to derive unauthorized profits out of it. Vendor shall continue to be responsible for any such act of its ex-employee and agrees to indemnify the Bank against any loss suffered by Bank due to disclosure of confidential information in such circumstances.

8. Bank acknowledges that it considers the Vendor related material information including software product(s), trade secrets, documentations and electronic or non-

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electronic communication made in confidence, to be confidential and, agrees that unless Bank has obtained Vendor's written consent, Bank shall keep such materials confidential and prevent their disclosure to any person other than employees, representatives of Vendor or any other person it reasonably believes to be authorised by Vendor to receive such information, to whom it shall be disclosed only for purposes specifically related to Vendor's permitted use of the Products/as necessary for the purposes of this agreement.

9. An Information shall not be considered confidential to the extent and only to the extent, such information is:
   a. already known to the receiving party free of any restriction at the time it is obtained from the other party.
   b. subsequently learned from an independent third party free of any restriction and without breach of this Agreement.
   c. is or becomes publicly available through no wrongful act of the other party.
   d. is independently developed by one party without reference to any Confidential information of the other.
   e. is required to be disclosed pursuant to a requirement of a governmental agency or law so long as the parties provide each other with timely written prior notice of such requirement.

10. The obligation contained in this clause shall survive after the termination of this Agreement. Confidentiality of customer information shall be maintained and survive even after the Agreement expires or terminated.
11. The infraction of confidentiality terms shall constitute material breach of the Agreement, and the Bank shall be entitled to take appropriate actions as available in law or under this Agreement against the Vendor as the case may be.

VENDOR agrees to indemnify PNB against any loss suffered by PNB due to breach of confidential terms as mentioned hereinabove.

1.13.30 Non-Disclosure Agreement

By virtue of Contract, as and when it is entered into between the Bank and the vendor, and its implementation thereof, the vendor may have access to the confidential information and data of the Bank and its customers. The vendor will enter into a Non-Disclosure Agreement to maintain the secrecy of Bank's data including but not limited to the following: -

1. That the vendor will treat the confidential information as confidential and shall not disclose to any third party. The vendor will also agree that its employees, agents, sub-contractors shall maintain confidentiality of the confidential information.

2. That the vendor will agree that it shall neither use, nor reproduce for use in any way, any confidential information of the Bank without consent of the Bank. That the

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vendor will also agree to protect the confidential information of the Bank with at least the same standard of care and procedures used by them to protect its own confidential Information of similar importance. Without limitation of the foregoing, the vendor shall use full efforts to advise the Bank immediately in the event that the vendor learns or has reason to believe that any person who has had access to confidential information has violated or intends to violate the terms of the Contract to be entered into between the Bank and the vendor and will cooperate in all manner in seeking injunctive relieve against any such person.

3. That if the vendor hires another person to assist it in the performance of its obligations under the Contract or assigns any portion of its rights or delegates any portion of its responsibilities or obligations under the Contract to another person, it shall cause its assignee or delegate to be bound to retain the confidentiality of the confidential information in the same manner as the Vendor is bound to maintain the confidentiality. This clause will remain valid even after the termination or expiry of this agreement.

4. That the vendor will strictly maintain the secrecy of Bank's data.

5. The Bank shall provide access to its premises to the authorized personnel of the vendor to carry out the work related to installation etc. which is required to perform its obligation to Bank. In accessing Bank's premises, the vendor shall however comply with any and all rules, regulations, policies and procedures relating to the access, entry, safety and security to discharge their obligation as per the terms and condition of the agreement.

6. Even if any employee of the vendor leaves the job or his services are terminated/expires, the vendor shall ensure that Banks confidential information is not shared with any third party nor Banks confidential information is used to derive unauthorized profits out of it. Vendor shall continue to be responsible for any such act of its ex-employee and agrees to indemnify the Bank against any loss suffered by Bank due to disclosure of confidential information in such circumstances.

7. The obligation contained in this clause shall survive even after the termination of this Agreement. Confidentiality of customer information shall be maintained and survive even after the Agreement expires or terminated.

8. . The infraction of confidentiality terms shall constitute material breach of the Agreement, and the Bank shall be entitled to take appropriate actions as available in law or under this Agreement against the Vendor as the case may be Vendor

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agrees to indemnify the Bank against any loss suffered by Bank due to breach of confidential terms as mentioned hereinabove.

1.13.31 Cancellation of Purchase Order

After issuance of purchase order to successful bidder, Bank reserves the right to cancel the purchase order without giving any notice, for following reasons –

1. Non submission of acceptance of order by the bidder within seven (07) working days of placement of Purchase Order.
2. Non submission of performance Bank guarantee within stipulated time as specified in the RFP.
3. Non signing of contract within the time specified by Bank.
4. Non submission of any report/undertaking/document/compliance which was due within one month from the date of Purchase Order.
5. Change in Bank's requirement(s)/Policy

1.13.32 Force Majeure

Notwithstanding anything contained in this Agreement, the vendor shall not be liable for penalty or termination for default if and to the extent that it's delay in performance or other failure to perform its obligations under the Agreement is the result of an event of force majeure. For purposes of this clause, "force majeure" means an event beyond the control of the vendor and not involving the vendor's fault or negligence and not foreseeable. Such events may include, but are not restricted to, war or revolution and epidemics. If a force majeure event arises, the vendor shall notify within 30 days the Bank in writing, the vendor shall continue to perform its obligation under the Agreement to the extent possible mitigate the consequences of the force majeure event and make all necessary alternative arrangements to perform their obligations and accordingly shall seek all alternative means of performance not prevented by the force majeure event. Instances of Commercial difficulty will not be covered under "Force Majeure"

Provided further that in case of delay of Services, which shall be solely decided by the Bank, the Bank shall not be held liable for non-performance of its obligations under the Agreement, and the Bank shall have the right to terminate this Agreement without giving any further notice to the Vendor. Bank reserves the right to assign the work to other Vendor without any consequences and claims.

1.13.33 Not acceptance/ Non-execution of Order

In case the bidder shortlisted through this RFP process (hereinafter called "successful bidder") refuses to accept / execute the order, Bank may invoke the PBG/EMD and terminate the Purchase Order and Contract. Bank also reserves the right to blacklist/debar the said successful bidder in such eventuality without giving any notice thereof in this regard for a period of further three years from the date of blacklisting/debarment.

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1.13.34 Liquidated damages

The Bidder should adhere to laws of the land and rules, regulations and guidelines issued by the various regulatory, statutory and Government authorities as required from time to time during the course of the contract.

Notwithstanding Bank's right to terminate the order, penalty at 1% (one percent) of the undelivered portion of the order value per week will be charged for every week's delay in the specified delivery schedule subject to a maximum of 10% of the order value. The Bank reserves its right to recover these amounts by any mode such as adjusting from any payments to be made by Bank to the Bidder/vendor. Such penalties will be based on the timelines stated by the Service Provider during the presentation to the Bank

If the Bidder fails to complete the due performance of the contract in accordance with the terms and conditions, the Bank reserves the right either to terminate the contract or to accept performance already made by the Bidder after imposing Penalty on Bidder. Penalty will be calculated on per week basis and on the same Rate as applicable to Liquidated Damages.

In case of termination of contract, the Bank reserves the right to recover an amount equal to 10% of the Contract value as Liquidated Damages for non-performance.

Both Penalty and Liquidated Damages are independent of each other and are applicable separately and concurrently. The penalty is for delay of performance and not for termination, whereas the liquidated damages are applicable only on event of termination on default.

Penalty and Liquidated Damages are not applicable for reasons attributable to the Bank and Force Majeure. However, it is the responsibility of the Bidder to prove that the delay is attributable to the Bank and Force Majeure. The Bidder shall submit the proof authenticated by the Bidder and Bank's official that the delay is attributed to the Bank and/or Force Majeure along with the bills requesting payment.

The Bidder shall perform its obligations under the agreement entered into with the Bank, in a professional manner.

If any act or failure by the Bidder under the agreement results in failure or inoperability of systems and if the Bank has to take corrective actions, to ensure functionality of its property, the Bank reserves the right to impose penalty, which may be equal to the cost it incurs or the loss it suffers for such failures.

If the Bidder fails to complete the due performance of the contract in document, the Bank reserves the right either to terminate the order or to recover a suitable amount as deemed reasonable as Penalty / Liquidated damages for non-performance. SLA/RFP violation will attract penalties.

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1.13.35 Limitation of Liability

Vendor's aggregate liability under the Agreement shall be limited to a maximum of the Agreement value. However, in the following circumstances, limitation of liability shall not apply, and the Vendor shall be liable for amount of cost, damages, compensation, penalty etc. suffered by the Bank: -

1. Liability of Vendor for third party claims for IP Infringement.
2. Liability of Vendor (including third party claims) in case of bodily injury (including Death).
3. Liability of Vendor (including third party claims) in case of damage to real property and tangible property caused by the Vendors' gross negligence.
4. Liability of the Vendor in case of gross negligence or wilful misconduct attributable to the Vendor while providing services under this Agreement.
5. Liability of the Vendor in case of fraudulent acts or wilful misrepresentation attributable to the Vendor regarding the services provided under this Agreement.
6. Breach of the confidentiality.
7. Employment liabilities for vendor's staff relating to the period of their employment within contractual period while working with Bank.
8. Any liability/ penalty/ cost/ compensation/ charges etc. that cannot be capped or is excluded as a matter of applicable laws and imposed by the statutory authority, government bodies, court, tribunals, regulatory authority etc. in relation to this Agreement, owing to the fault of the Vendor.
9. For any other breach caused due to the non-performance of the obligations of the Successful bidder under the agreement aggregate liability of successful bidder/vendor under the contract shall be limited to a maximum of TCO VALUE where the issue is resolved amicably without intervention of court/arbitration.

This clause shall not limit any liability of successful bidder/vendor determined by any judicial/ quasi-judicial authorities or Government's directions.

1.13.36 Data Purging

The vendor should ensure to have provision for the secure removal and/or destruction of data, hardware and all records (both digital and physical), if necessary. To ensure the seamless transition, the vendor should cooperate fully with the Bank/the new service provider and agree not to delete, purge, revoke, alter or update any data during this time unless specifically instructed to do so by the Bank.

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2 BIDDING DOCUMENT

The Bidder is expected to examine all instructions, forms, terms and conditions in the Bidding Documents. Failure to furnish all information required by the Bidding Documents or submission of a bid not substantially responsive to the Bidding Documents in every respect will be at the Bidders' risk and may result in the rejection of its bid without any further reference to the bidder. Bidder should submit the bid strictly as per RFP failing which bid will be treated as non-responsive and will be liable for rejection.

2.1 Late Bid

Any bid received by the Bank after the deadline for submission of bid will not be accepted and liable to be rejected.

2.2 Pre-Bid Meeting & Pre-Bid Queries

Bidders/OEMs are required to submit the pre-bid queries, through GeM portal. In case any bidder/OEM is unable to submit the queries through GeM, Bidders/OEMs may raise the queries on the email IDs mentioned in RFP clause 1.3 "Contact to Bidders" of this Bid Document, in the following formal in excel file only on/before the date of pre-bid meeting:

Sr. No.	RFP Page No.	RFP Clause Name & No.	RFP Clause	Bidder's Query/Suggestion/Remarks

Bidders/OEMs interested to attend the pre-Bid meet should have their authorization letter from their competent authority (hardcopy/email) to attend the pre-bid meeting clearly stating the name, designation and contact number. All Bidders should carry their ID card issued by their company. Only two persons per bidder shall be allowed to attend the Pre-Bid meeting.

Pre-requisites for attending pre-bid meeting:

1. Authorization Letter (email or hardcopy)
2. Queries as per the format of the Bank through E-Mail
3. Copy of organization ID card of attending representatives.

No person shall be allowed to attend the Pre-Bid meeting without Proper Authorization letter from their Company and without their Official ID Cards issued by their company. (Any other ID proof such as PAN, DL or AADHAAR card will not be accepted).

In case the Bank issues any Corrigendum, Bidder may raise further queries/representations, if required, within 4 Bank working days from the issue of such Corrigendum. Any query received after 4 Bank working days may not be considered by the Bank for issuing response/clarification.

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Bidders are required to go through the RFP and any subsequent Corrigendum/clarifications meticulously and submit their queries timely to avoid any last-minute issues.

2.3 Submission of Bid

All the Annexures and bid documents are to be uploaded in pdf format during the online bid submission on GeM. All the pages should be signed by the authorized signatory of the Bidder and seal of the Bidder should be affixed on each and every page of the bid document. All the correspondence should be addressed to Bank at the following address.

The Assistant General Manager
Punjab National Bank,
Processing Cell
Centralized Procurement and Partnership Division,
HO: 5 Sansad Marg,
New Delhi 110 001

2.4 Preliminary Examination

Bids that do not meet the basic & undernoted requirements specified in the bid documents are to be disqualified. Some important points on the basis of which a tender may be declared as unresponsive and be ignored during the initial scrutiny are:

i. The tender is not in the prescribed format or is unsigned or not signed as per the stipulations in the bid document.
ii. The required EMD has not been provided or exemption from EMD is claimed without acceptable proof of exemption. However, in case the scanned copy of the EMD has been provided as against the original copy, then the bid may be accepted only if the scanned copy of the EMD is otherwise as per the bid requirements. However, the original copy should be submitted to the Bank within 5 working days of the bid submission date.
iii. The bidder has not submitted Proof of RFP cost, if stipulated in RFP.
iv. The bidder has not submitted Integrity Pact.
v. If the bidder's turnover is not equal or above the minimum turnover specified in the eligibility criteria.

2.5 Discrepancies between original and scanned copies of bid

Discrepancies can also be observed in responsive bids between the original copy and uploaded scanned copies. In such a case, the text, and so on, of the scanned copy will prevail.

2.6 Minor Infirmity/Irregularity/Non-Conformity

During the preliminary examination, some minor infirmity and/or irregularity and/or nonconformity may also be found in some tenders. Such minor issues could be a missing pages/ attachment or illegibility in a submitted document, non-submission of requisite number of copies of a document. Wherever necessary, observations on such 'minor' issues

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may be conveyed to the bidder through GeM portal, and so on, asking him to respond by a specified date also mentioning therein that, if the bidder does not conform Bank's view or respond by that specified date, his bid will be liable to be rejected. Depending on the outcome, such bidders are to be ignored or considered further.

2.7 Consideration of Abnormally Low Bids

An Abnormally Low Bid is one in which the Bid price appears so low that it raises material concerns as to the capability of the Bidder to perform the contract at the offered price. Bank may in such cases seek written clarifications from the Bidder, including detailed price analyses of its Bid price in relation to scope, schedule, allocation of risks and responsibilities, and any other requirements of the bid's document. If, after evaluating the price analyses, Bank determines that the Bidder has substantially failed to demonstrate its capability to deliver the contract at the offered price, the Bank may reject the Bid/Proposal.

2.8 Contacting the IEMs (Independent External Monitors)

The IEMs are not to be contacted for generic tender related queries, for which queries may be directed to contact details mentioned in Bid details.

2.9 Acceptance of order (order placement)

Orders will be placed by the Bank. The successful bidder shall have to accept and acknowledge orders within 7 working days from the date of order placement. Bank has a right to cancel the order and forfeit the entire EMD amount if the same is not accepted within a period of 7 working days from the date of order.

2.10 Taxes and Duties

The rates quoted in Commercial offer should be inclusive of all taxes, duties and GST as per terms and conditions of GeM. However, GST shall be paid to the bidder on actual basis at the rate applicable. The rate of applicable GST should be informed and charged separately in the invoice generated for supply of the product. Bidder shall provide the breakup of the cost in the uploaded commercial file.

It will be the responsibility of the Bidder to provide clarifications/particulars/ documents etc. to the appropriate tax authorities for assessment of tax, compliance with labour and other laws, etc. at its cost.

Tax deduction at Source - Wherever the laws and regulations require deduction of such taxes at the source of payment, the Bank shall be within its right to affect such deductions from the payment due to Vendor. The remittance of amounts so deducted and issuance of certificate for such deductions shall be made by the Bank as per the laws and regulations in force. Nothing in the Contract shall relieve Vendor from his responsibility to pay any tax that may be levied on income and profits made by Vendor in respect of this contract.

2.11 Information Security

Successful Bidder upon selection will comply with all the present and future provisions of the Information Security Policy/Guidelines of RBI, Respective Govt. Agencies and the Bank

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and provide such regulatory requirements at no additional cost to Bank during and after the contract period. The Solution may be audited by RBI/any other Regulatory Authority and any observation pointed out by these bodies have to be complied by the successful bidder within the timelines stipulated by the regulatory agencies, without any additional cost to the Bank. The offered solution shall be subjected to Bank's audit through off-site and on-site scrutiny at any time during the contract period. The auditors may be internal/ external. The successful bidder should provide solution and implementation for all the audit points raised by Bank's internal/external team during the contract period, within the stipulated timelines, without any extra cost.

Any financial loss to the Bank, because of security breach, Negligence or any reason attributable to the Vendor will be recovered from the Vendor.

2.12 No Right to Set Off

In case the Bidder has any other business relationship with the Bank, no right of set-off, counterclaim and cross-claim and or otherwise will be available under this empanelment to the Bidder for any payment's receivable under and in accordance with that business.

2.13 Publicity

Any publicity/ public announcement relating to the Agreement, work to be carried out in Bank towards this project, Services or Deliverables is strictly prohibited. Neither Deliverables nor reference to either Party may be included or made in any prospectus, proxy statement, offering memorandum or similar document or materials prepared for public distribution. No information of any nature related to this project shall be disclosed to any third party unless otherwise necessary prior permission has been taken from the Bank.

2.14 Compliance with Laws

The Bidder shall comply with all laws and regulations applicable to their respective businesses including without limitation, all privacy, database, copyright, trademark, patent, trade secret, Labor Laws, Anti-Bribery Laws, environmental protection, competition Act ,data protection and all other applicable laws. Further vendor shall adhere to General Financial Rules, 2017, and clarifications/ Office Memorandum issued by Department of Expenditure, Ministry of Finance and stay informed about further changes in the relevant laws, GFR, and clarifications/ OMs from the Ministry

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2.15 Use of Contract Documents and Information

The bidder/supplier shall not, without the Bank's prior written consent, make use of any document or information provided by Bank in Bid document or otherwise except for purposes of performing contract.

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2.16 Contract Between Bank and Shortlisted Bidder/TSP (Technical Service Provider)

The shortlist bidder/TSP shall be required to execute SLA (Service Level Agreement) and NDA (Non-Disclosure Agreement) with the Bank.

2.17 Principal to Principal Relationship

1. Nothing in this Contract constitutes any fiduciary relationship between the Bank and Bidder's Team or any relationship of employer - employee, principal and agent, master-servant relationship or partnership or joint venture, between Punjab National Bank and Bidder. The relationship is on principal-to-principal basis.
2. No Party has any authority to bind the other Party in any manner whatsoever, except as agreed under the terms of the Agreement.
3. Punjab National Bank have no obligation to the Bidder, except as agreed under the terms of the Agreement.
4. All employees/personnel/ representatives/agents etc., engaged by the Bidder for performing its obligations under the Contract/PO shall be in sole employment of the Bidder and the Bidder shall be solely responsible for their salaries, wages, statutory payments etc. Under no circumstances, shall Punjab National Bank be liable for any payment or claim or compensation (including but not limited to any compensation on account of any injury /death / termination) of any nature to the employees/personnel/representatives/agent etc. of the bidder.
5. The Bidder shall disclose to Punjab National Bank in writing, all actual and potential conflicts of interest that exist, arise or may arise (either for the Bidder or its team/agents/representatives/personnel etc.) in the course of performing the Services as soon as practical after it becomes aware of that conflict.
6. The Bidder shall not make or permit to be made a public announcement or media release about any aspect of the Contract unless Punjab National Bank first gives the Bidder its prior written consent.
7. Bidder would comply with the statutory obligations and Labour Regulations/ Rules in this regard so far as applicable The Bidder shall be responsible for payments of all statutory dues with respect to each of its personnel/employees engaged by it to render service under this Agreement with respect to each applicable Labour law, including, the Minimum Wages Act, 1948, the Payment of Wages Act, 1936, the Payment of Bonus Act, 1965, the Employees' State Insurance Act, 1948, the Payment of Gratuity Act, 1972, the Maternity Benefit Act, 1961, the Employees' Provident Funds and Miscellaneous Provisions Act, 1952, Contract Labour. (Regulation and Abolition) Act, 1970 etc. or any other applicable future laws. No dues/contributions under any labour legislations, as applicable, remain payable with respect to his personnel/employees. The Bidder will have no claims whatsoever against the Bank with respect to payment of statutory dues/contributions to personnel/employees of under applicable labour and Industrial legislations.

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2.18 Waiver

Any failure or delay on the part of either party relating to the exercise of any right power privilege or remedy provided under this Agreement or subsequent agreement with the other party shall operate as a waiver of such right power privilege or remedy or as a waiver of any preceding or succeeding breach by the other party nor shall any single or partial exercise of any right power privilege or remedy preclude any other or further exercise of such or any other right power privilege or remedy provided in this Agreement, all of which are several and cumulative and are not exclusive of each other or of any other rights or remedies otherwise available to either party at law or in equity.

2.19 Adherence to the Cyber Security Policy

1. Bidders are liable for meeting the security standards or desired security aspects of all the ICT (Information and Communication Technology) resources as per Bank's IT/Information Security / Cyber Security Policy. The IT /Information Security/ Cyber Security Policy may be shared with successful bidder. Bidders should ensure Data Security and protection of facilities/application managed by them.
2. The Bidder should be aware about Bank's IT/IS/Cyber security policy and have to maintain the secrecy & confidentiality of the Bank's data including process performed at the Bank premises.
3. Bidder has to agree and provide undertaking not to disclose any Bank information and will maintain confidentiality of Bank information as per policy of the Bank and will sign "Non-Disclosure Agreement" document provided by Bank.
4. The legal and regulatory requirements, including data protection, intellectual property rights, copy right, all the relevant regulations for sub-contracting; including the controls that need to be implemented shall be included in the supplier agreement also.
5. All information /resources (online/in-person) of the vendors and its partners shall be made accessible to Reserve Bank of India as and when sought.
6. Credentials of vendor/third party personnel accessing and managing the Bank's critical assets shall be maintained and shall be in accordance with Bank's policy.
7. The Bank will evaluate, assess, approve, review, control and monitor the risks and materiality of vendor/outsourcing activities and bidder shall ensure to support baseline system security configuration standards. The Bank will also conduct effective due diligence, oversight and management of third-party vendor's/service providers & partners.
8. Vendor criticality assessment shall be conducted for all partners & vendors. Appropriate management and assurance on security risks in outsourcing and partner arrangements shall be ensured.

2.20 Variation of Quantities

The Bank reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The Bank also reserves the

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right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

2.21 Cost of Bidding

The Bidder shall bear all the costs associated with the preparation and submission of their bid and Punjab National Bank, hereinafter referred to as "Purchaser" or "Bank", will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the bidding process.

2.22 Sub-Contracting

Subcontracting is not allowed under this RFP. Bank will only deal with the bidding entity i.e. the Bidder, who will be responsible for delivery of all services. The bidder will be fully responsible to the Bank for execution of the contract in its entirety and compliance of SLA, the delivery of all the services as per the RFP and will be a single point of contact

2.23 Insurance

The hardware, components, equipment, etc to be supplied under the contract period as a part of the service shall be fully insured by the bidder throughout the contract period against loss or damage incidental to manufacture or acquisition, transportation, storage, delivery, installation and integration. Bank will not be responsible for any loss to the bidder on account of non-insurance to any equipment, goods or services. All expenses towards insurance shall be borne by the successful bidder.

2.24 Fall Clause

If the successful bidder reduces its price or sells or even offers to sell the contracted goods/ services at a price lower than the rate contracted price for same scope work, technical/ functional specifications, to any bank or organization during the contract period, the contract price will automatically be reduce with effect from the date from which such sale or offer of sale was made to outsider.

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3 PART – B – BID SPECIFIC CLAUSES

3.1 Purpose of the Project:

The Bank intends to select a vendor for supply, implementation and management of Mobile Device Management Solution with Mobile application Management to protect Bank's infrastructure, applications and Data from the threats arising from the use of smart devices like mobiles and tablets. Mobile Device management (MDM) is security software that enables the Bank to implement policies to secure, monitor and manage end user portable devices. Mobile Application Management (MAM) involves managing and securing Mobile Applications and their data on portable devices.

3.2 Scope of Work

Mobile device management refers to any tool or software designed to control and secure mobile devices like smartphones and tablets across an organization and allow employees to access company data, files, and applications on their personal devices.

Mobile Device Management (MDM) and Mobile Application Management (MAM) work together to provide comprehensive management and security for both devices and applications within the Bank. A brief overview of the Bank's requirement are outlined below:

1. **Device Enrollment:** Devices are enrolled in the MDM system, either through manual registration by the user. During enrollment, the device establishes a secure connection with the MDM server.
2. **Policy Configuration:** Administrators configure policies and settings within the MDM platform to govern both device and application behavior. These policies may include device-level settings such as passcode requirements, encryption, and restrictions on certain device functionalities, as well as application-level policies such as app whitelisting, blacklisting, and data sharing permissions.
3. **Application Deployment:** MAM capabilities allow to deploy and manage applications on enrolled devices. This includes distributing corporate-approved apps, pushing updates, and revoking access to unauthorized or outdated apps.
4. **Containerization:** MAM often utilizes containerization techniques to create secure containers on mobile devices. These containers separate corporate data and applications from personal data and apps, ensuring that business information remains protected even on employee-owned devices.
5. **App Configuration:** Administrators can configure application settings and policies remotely, such as specifying app preferences, configuring access controls, and enforcing data encryption within managed applications.
6. **App Wrapping:** MAM solutions may employ app wrapping techniques to add security features to existing applications without modifying their code. This allows organizations to enhance the security of third-party or custom-built apps without requiring access to the app's source code.

7. **Monitoring and Management:** MDM with MAM enables administrators to monitor and manage both devices and applications from a centralized dashboard. This includes tasks such as tracking device usage, enforcing compliance with security policies, remotely wiping corporate data from lost or stolen devices, and revoking access to corporate resources for non-compliant devices or apps.
8. **Security Measures:** MDM and MAM solutions offer various security features to protect both devices and applications. These may include device encryption, remote lock and wipe capabilities, app secure data transmission, app-level encryption, and malware detection and prevention.
9. **User Self-Service:** Many MDM and MAM solutions provide self-service portals or apps that empower users to perform certain actions on their devices and applications, such as remotely locating a lost device, resetting app configurations, or installing corporate-approved apps.

By combining MDM with MAM, a comprehensive mobile security and management framework can be established. that addresses both device and application-level security requirements, ensuring a secure and productive mobile work environment

3.3 Detailed Scope of Work:

Bank intends to procure the Mobility solutions (Mobile Device & Application Management) to enhance the security landscape of the Bank. The Scope includes procurement, installation, implementation, integration, maintenance and support of the solution with all the relevant applications and infrastructure during the contract period.

Detailed overview of the Bank's requirements is outlined below:

i. Bidder to supply, install, implement, commission, and maintain 25000 Mobile Device Management (MDM) & Mobile Application Management cloud based (SaaS) User licenses on an annual subscription basis for entire duration of contract to control access in corporate owned Mobile & TAB Devices and availing implementation support in deployment, configuration & maintenance, upgradation, validation, user support to resolve encountered issues etc. of the solution. Further, each user's license should have the capability to run on at least two devices, i.e. 25000 user-based licenses should be capable of being run on 50000 devices. Further, bidder to ensure compliance of Bank's cloud security policy.

ii. The successful bidder to provide all the necessary software licenses, implement, train and handover the solution to Bank. They would subsequently provide the premium support through bug fixes, updates and upgrades. Full documentation of the project is to be included in the deliverables by the successful bidder.

iii. During the course of implementation OEM/OSD involvement should be spanning across all phases of implementation including Project Preparation, Solution Design Phase (Including Review/design of all the Policy Documents, Blueprints and other Solution documents), Configuration and Customization, Integration, Acceptance and

Training. Post Implementation half yearly on-site review of the implementation and adequate support is required from the OEM/OSD. OEM/OSD is required to submit the review report directly to the Bank and bidder needs to close the same. OEM is required to provide the undertaking for the same

iv. Bidder is required to work with the existing System Integrator(s) of the Bank to integrate the solutions with existing environment such as EMS/ NMS solutions, SIEM, ticketing tools etc.

v. Bidder is required to provide the necessary personnel to manage the operations for the solutions in scope and to ensure SLA compliance.

vi. The Bank will provide the network bandwidth for the in-scope solution. However bidder is required to study the existing bandwidth at Bank Premises and then need to suggest Bank with the bandwidth requirement for in-scope solution, if any upgrade is required in terms of bandwidth bidder is required to provide the Bank with necessary documentation and support in order to upgrade the bandwidth(if required, Bank will upgrade the Bandwidth post review of the submitted documents and bidder is not required to factor in any cost for upgrade of bandwidth). It is expected that the proposed solution to consume minimal bandwidth, so that it should not impact Bank's Day to day business operations.

vii. Bidder to provide & implement regular updates, upgrades, patches released by the OEM/OSD during the entire contract period and shall document and provide the documents to the Bank detailing all the changes in the solution. If required, bidder is required to provide the training to the Bank Officials of all the changes made in the solution at no additional cost to the Bank during the contract period.

viii. Bidder to ensure that neither during installation nor during operations of the proposed solutions any of the existing infrastructure/ business of the Bank is impacted.

ix. The responsibility of integration of the proposed solutions with the existing or any new security solutions procured by the Bank during the contract period, if required, lies with the bidder/vendor selected through this RFP. The Bank shall provide adequate support to bidder for the purpose of integration.

x. The bidder shall provide training to the Bank personnel on operations, alert monitoring, policy configuration, generation of reports, and analysis of the reports, Troubleshooting and familiarization of features and functionalities for all solutions independently.

xi. The bidder will have to ensure that training is imparted in a professional manner through qualified personnel's and Course materials would have to be provided for the same.

xii. The following elements are all required to construct a complete, end-to-end mobility

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solution. Mobile devices, such as notebook PCs, tablet PCs, Smart Phones, data and Internet services. Infrastructure to support the application, especially next generation (5G) wireless networks and security/encryption software loaded on the mobile devices and network infrastructure Enterprise applications integration includes back-office applications, legacy systems, security, and all the other aspects of the Bank. Mobile Device Management & Mobile Application Management is an essential solution required by the Bank to manage, monitor and support the use of mobile devices.

xiii. The proposed Mobility solution should be able to address the following key areas but not restricted:
   a. Configuration of the solution balancing critical document access requirements with data security assurance
   b. Tying mobility to strategic business objectives
   c. Identifies key business processes that can be improved with mobilization
   d. Defines business process improvements
   e. Devise business and technical alignment with the Bank's requirement
   f. To implement every aspect of the identified and designed mobility initiative, including architecture and systems integration
   g. Assists with device management and configuration
   h. Provides different devices application hosting options. Provides help desk services
   i. Scale, so new users and increasingly sophisticated devices can be accommodated easily.

xiv. Additionally, the Bidder is expected to perform the following activities:

1. SOLUTION IMPLEMENTATION

a. Implement the solution for the identified devices.
b. Configuration/re-configuration of the required policies

2. SOLUTION INTEGRATION

a. Integrate Mobility Solution with SIEM to generate alerts for any violations.
b. The responsibility of integration of solutions with SIEM and other security solutions (existing or procured through this RFP or new procured), if required, lies with the Bidder selected through this RFP. The Bank shall provide adequate support to the Bidder for the purpose of integration
c. The Bidder needs to ensure the proposed solution is configured to generate events for monitoring through SIEM.

3. MONITORING

a. Monitor events from Mobility Solution and take appropriate action after due approval from the Bank on an on-going basis.
b. improve the policies configured on an on-going basis to reduce the occurrence of false positives.

4. Onsite technical Support & Maintenance

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1. Bidder shall be responsible for providing one L1 (Level 1) resource in Bank's premises in general shift of 8 hours (10:00 AM to 06:00 PM)
2. Onsite resource should have bachelor's degree or diploma in IT or equivalent and one year experience of the solution.

3.4 Training

The successful bidder shall arrange five (05) days on-premises training for the new solution deployed without additional cost to the Bank. The training should be given for up to 10 officials of the Bank in Delhi within 1 month after sign-off or before sign-off as per Bank's officer availability. The training should cover complete administration, customization & day-to-day maintenance of the offered solution. The training should cover all aspects of the solution and should be classroom based.

3.5 Delivery and Implementation schedule:

i. **Delivery of licenses:** License should be delivered within two (02) weeks of the date of acceptance of purchase order.

ii. **Implementation & signoff:** licenses should be implemented within two (02) weeks from date of acceptance of purchase order & signoff should be completed within four (04) weeks from the date of acceptance of purchase order.

3.6 Penalty Terms

Various scenarios for which penalty will be deducted and percentage of same with respect to payment.

i. Penalty due to downtime

After activation of complete solution, the penalty will be deducted for downtime of the services (A) as below

Uptime(U)	**Penalty**
U >=99.99	No penalty
99.50<=U<99.95	0.1% of (A)
99.00<=U<99.50	0.2% of (A)
98.50<=U<99.00	0.3% of (A)

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98.00<=U<98.50	0.4% of (A)

And so on: for every 0.5% drop in the uptime, penalty will be 0.1% of (A), up to a maximum of 10% of (A)

Penalty due to downtime, during entire duration of contract period will be deducted from any subsequent payment to be made to the vendor.

ii. Penalty due to Absence of onsite engineer

In the absence of deployed OTS resource at HO, suitable replacement is to be provided on immediate basis. In case of absolute absence (when no replacement is provided), penalty would be deducted at the rate of 0.5% of monthly charges for each day, up to maximum of 10%.

iii. For non-resolution of complaints:

The vendor will have to log the call with OEM/OSD respond to issues raised by Bank within 01 hour and get the same resolved within 04 hours. If the same is not resolved within said limit, penalty will be applicable at the rate of Rs 2000/-per day until the problem resolution.

iv. Activation of licenses within 2 weeks from Date of acceptance of PO else penalty will be 0.5% of PO for every week delay.

3.7 Payment Terms

- Payment shall be released only after submission of utilization reports as required by the Bank, downtime reports and after deduction of penalty, if applicable.

- License Fee/Cost : Quarterly in arrear (Yearly License amount will be divided by 04 to arrive quarterly amount and payment will be released accordingly). Payment will be released on delivery of license and post successful implementation and acceptance by the Bank.
- Onsite support Services: Quarterly in Arrear (Yearly amount will be divided by 04 to arrive quarterly amount)

- Payment shall be released quarterly in arrears aligned with financial year quarter

- First quarter payment shall be released after 3 months of successful implementation of MDM licenses and execution of Service Level Agreement, Non-Disclosure Agreement and submission of performance Bank guarantee.

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- One Time implementation charges, if any, will be paid along with quarter payment.
- Bidders should raise invoice quarterly after completion of quarter and the invoice should be submitted within 15 days from the date of generation of the invoice.

3.8 Signing of Contract

1. The successful bidder(s) shall mandatorily enter into a Service Level Agreement (SLA) & Non-Disclosure Agreement (NDA) within 30 working days of the award of the tender or within such extended period as may be permitted by the Bank. The letter of acceptance and such other terms and conditions as may be determined by the Bank to be necessary for the due performance of the work in accordance with the Bid and the acceptance thereof, with terms and conditions shall be contained in a Service Level Agreement/ Purchase Order to be signed at the time of execution of the Form of Contract. If the contract is not signed within the given period (30 working days or till such period as extended by the Bank), the EMD will be forfeited after a grace period of 15 working days from the lapse of such period.
2. Bank reserves the right to blacklist/debar the said successful bidder after a grace period of 15 working days.
3. The bidder has to accept all terms and conditions of the Bank and should not impose any of its own conditions upon the Bank. A bidder who does not accept any or all conditions of the Bank shall be disqualified from the selection process at any stage as deemed fit by the Bank.

Note: Working days in the RFP refers to Bank's working days.

3.9 Duration of Contract

1. The agreement with a successful bidder will be for period of 05 years.
2. After the expiry of the contract period of five (05) years, the contract may be extended for a period of one (01) year each or part thereof with maximum for two (02) years on the same rates and terms & conditions, subject to satisfactory performance of successful bidder.
3. Service Level Agreement' to be signed between Bank and the successful bidder following the completion of selection process and will continue until end of the contract period or terminated whichever is earlier.
4. The Bank reserves the right to terminate the contract at any time in case the successful bidder fails to meet any of the requirements as mentioned in the RFP.

3.10 Other Terms and Conditions

1. The Bidder shall comply with the directions issued from time to time by Bank and follow the industry and statutory standards related to the security and safety, in so far as it applies to the provision of the Services relating to the Project defined as per RFP.

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2. The Bidder shall upon prior intimation by the Bank or its nominee(s) participate in regular meetings where safety and information technology security matters are being reviewed.
3. Consortium Bidding will not be accepted by Bank.
4. Location of Onsite technical support person can be changed as per the Bank requirement. It maybe DC or DR or any other site of the Bank.

3.11 Bid Submission Process

3.11.1 Documents for Technical Bid

Interested and eligible bidders may submit their proposal in the prescribed format (enclosed here) with complete information. The proposal duly filled in, along with all supporting document(s) / information should be submitted to the Bank through the GeM Portal. The document checklist is provided under Document Checklist.

3.11.2 Documents for Commercial Bid

The bidder shall submit the commercial bid as per the format given in **Annexure 11** – Performa of the Commercial Bid.

The Commercial Offer should give all relevant price information as per the commercial bid format and should not contradict the Technical Bid document in any manner.

3.11.3 Shortlisting of bidders- Technical Evaluation

The Bank will evaluate the bidders based on:

1. **Whether tender fees / EMD / Bid security declaration has been submitted**
   First of all, the RFP Cost / Tender fees and EMD of all bidders will be verified. If any RFP Cost / EMD / Bid security declaration is not found in order, that bidder will be declared ineligible for further participating in the tender process.
2. **Compliance to Eligibility criteria**
   The technical bids will be evaluated based on the eligibility criteria as per **Annexure-2** mentioned in the RFP document. Bids complying with all the eligibility criteria and confirming compliance to all the terms & conditions of RFP document would be further evaluated on technical specifications / parameters.
3. **Compliance to terms and conditions of the RFP, corrigendum (if any)**
   a. Bank will determine to their satisfaction whether the bidder selected as having submitted the best evaluated responsive bid is qualified to satisfactorily perform the contract. The decision of Bank will be final in this regard. The determination will take into account bidders financial, technical and support capabilities as per RFP, based on an examination of documentary evidence submitted by bidders. The Bank reserves the right to accept or reject any product/ item/ technology / module / functionality proposed by the bidder without assigning any reason thereof. The Bank also reserves the right to reject any Bid, in case any of the Technical Specification

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/ Solution is not in compliance to Bank's requirement. Decision of the Bank in this regard shall be final and binding on the bidders.

b. For responses received within the prescribed closing date and time the Bank will scrutinize the offers received as per the above-mentioned list and to determine whether they are complete and as per the requirements, and also whether all the required documents, as asked for and is required to evaluate the responses have been submitted, whether the documents have been properly signed, etc.
c. The Bank may, at its discretion, waive any minor non-conformities or any minor irregularity in the proposal. This shall be binding on all bidders and the Bank reserves the right for such waivers.
d. Upon receipt of applications (RFP) the same shall be scrutinized and evaluated by the Bank and the Bank will shortlist /select bidders as per requirement and the same shall be communicated to the bidders. The Bank also reserves the right to accept or reject any or all applications without assigning any reason whatsoever.
e. During pre-qualification and evaluation of the proposals, Bank may, at its discretion, ask respondents for clarifications on their proposal. The respondents are required to respond within the time frame prescribed by PNB. Respondents are not permitted to modify, substitute or withdraw proposals after its submission.
f. The Bank reserves the right to check / validate the authenticity of the information provided in the eligibility and technical evaluation criteria and requisite support must be provided by the bidder. The Bank may ask for queries on each of the criteria wherein the bidder needs to response within stipulated timelines.
g. **Demonstration and Capability Presentation** -If required, the Bank may ask the bidder to arrange for the demonstration and presentation of the offered products and how the project will be carried out by the bidder. The Bank may ask the bidder to provide the presentation (overall presentation or to cover up any specific area during the presentation).

3.11.4 Commercial Evaluation

1. Commercial bid of technically qualified bidders will be opened as per RFP. The bidder should quote as per Price Format (i.e., **Annexure-11**) in Indian Rupees as the all-inclusive price for the desired work / services.
2. The determination of successful bidders shall be determined after compliance of Make in India and MSE guidelines
3. While submitting the financial bid, following must be kept in mind:
    a. The price quoted should include all costs associated with the assignment (support, maintenance, customization etc.). A separate Tax breakup should be provided by the bidder.

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b. The financial proposal should not include any conditions attached to it and any such conditional financial bid shall be summarily rejected.
c. The financial bid should be submitted in the Price Format given in **Annexure 11** – Performa for Commercial Bid.

4. The bidder quoting the lowest price will be identified as the L1 bidder and who quotes second lowest will be L2 bidder and so on and so forth.
5. L1 bidder will be decided on the basis of Least cost of TCO, arrived after Commercial Opening and applying Make in India and MSE purchase preference.
6. Declaration of successful Bidders and award of the contract to such vendors shall be only after applying MII and MSE purchase preference as applicable.
7. Bank reserves the right to negotiate with the L1 Bidder.

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4 PART C – ANNEXURES

Annexure 1 – Undertaking from the Bidder
(To be submitted on Bidder's letterhead)

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Dear Sir,

We submit our Bid Documents herewith **for GeM Bid No: GEM/B/2025/**

We M/s_____, a company incorporated under the Companies Act- 1956/ Companies Act-2013/ Partnership Bidder registered under LLP Act 2008 with its headquarters at, _____ understand and confirm that:

1. We confirm that we have all necessary licenses, permissions, No Objections, Approvals as required under the law for carrying out our business. We have valid GSTN and other applicable tax, registration certificates, PAN etc as applicable for rendering our services as per the requirement of the Bank.

2. The Bank is not bound to accept the lowest or any bid received, and Bank may reject all or any bid.

3. If our Bid for the above job is accepted, we undertake to enter into and execute at our cost, when called upon by the purchaser to do so, a contract in the prescribed form. Till such a formal contract is prepared and executed, this bid shall constitute a binding contract between us and the Bank.

4. If our bid is accepted, we are responsible for the due performance of the contract.

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5. The Bank may accept or entrust the entire work to one Bidder or divide the work to more than one bidder without assigning any reason or giving any explanation whatsoever.

6. We have not been blacklisted/debarred/banned by any Government, Government agency, Banks, Financial Institutions, PSUs in India during the last 3 years from the last date of bid submission.

7. **Terms & Conditions:** We hereby undertake and agree to abide by all the terms and conditions including all annexure, corrigendum(s) etc. stipulated by the Bank in this RFP. (Any deviation may result in disqualification of our bid).

   We understand & agree that in event of being successful in the bid and being empanelled, we shall comply to the terms & conditions of RFP in future and shall not attempt to get the same changed from Bank later on in process of empanelment, contract signing, and extension of contract and / or subsequent purchase order/s from Bank. We understand and agree that such attempts and noncompliance to RFP terms may lead to cancellation of our agreement and suitable penal action may be taken by Bank against us including invoking the EMD and/ or PBG and black- listing.

   Scope of work and/ Technical Specifications: We certify that the systems/services offered by us for this tender, conform to the Scope of work and technical specifications stipulated by you for the aforementioned services. (Any deviation may result in disqualification of our bid).

   RFP, Clarifications & subsequent Corrigendum/s, if Any: We hereby undertake that we have gone through RFP, clarifications & Corrigendum/s issued by Bank and agree to abide by all the terms and conditions including all annexure, corrigendum(s) etc. stipulated by the Bank in this RFP. (Any deviation may result in disqualification of our bid)

8. We have participated in the captioned RFP and hereby undertake that we have read the clauses stated in the Office Memorandum issued by Ministry of Finance, Government of India on the Insertion of Rule 144 (xi) in the General Financial Rules (GFRs), 2017 dated 23 July 2020 and amendments & clarifications hereto regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries.

   We certify that: *(strike out whichever is not applicable)*

   1. We and our OEM(s) are not from such a country.

   OR

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2. We and our OEM(s) are from such a country and has been registered with the Competent Authority and we and our OEM will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. (Relevant documents to be enclosed)

We have read also read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (TOT) arrangement and we certify that: *(strike out whichever is not applicable).*

1. We and our OEM(s) does not have any TOT arrangement requiring registration with the competent authority

OR

2. We and/or our OEM(s) have TOT arrangement and have valid registration to participate in this procurement. (Relevant documents to be enclosed)

We hereby certify that we fulfil all requirements in this regard and is eligible to be considered for this procurement.

If at any time our undertaking is found false or non-compliant with the above order of the Ministry of Finance, Bank may immediately terminate the contract and may take legal action in accordance with the law.

We have enclosed the relevant approvals from the Competent Authority in this regard.

9. We do hereby undertake that we are solely liable and responsible for compliance of applicable Labour Laws and other rules regulations and ordinances applicable in respect of our employee, agents, representatives and sub-contractors (if allowed) and in particular laws relating to terminal benefits such as pension, gratuity, provident fund, bonus or other benefits to which they may be entitled and the laws relating to contract labour, minimum wages, etc., and the Bank shall have no liability in this regard. We also agree and undertake that during the entire period of RFP process and also during the entire period of the contract/SLA we will not employ or engage any personnel / individual below the Minimum Wages fixed by appropriate Government on this behalf from time to time, as per the provisions of Minimum Wages Act 1948 and other laws as applicable.

10. We hereby state that we comply with all the directions and clauses as stated in the said circulars:
a) RBI/2023-24/102 DoS.CO.CSITEG/SEC.1/31.01.015/2023-24 dated 10.04.2023 regarding Master Direction on Outsourcing of Information Technology Services

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b) RBI/2023-24/107 DoS.CO.CSITEG/SEC.7/31.01.015/2023-24 dated 07.11.2023 regarding Master Direction on Information Technology Governance, Risk, Controls and Assurance Practices

We along with the resources deployed by us and services provided by us, will also ensure compliance of all the clauses and directions of the aforesaid circular and any subsequent circular/guidelines on the same, throughout the period of the contract.

11. We do hereby confirm that we and/or our subsidiaries/affiliates have not been engaged with Punjab National Bank for any consultancy services related to the preparation or implementation of this project.

12. The escalation matrix of our organization is as follows:

Sl. No.	Escalation Level	Name	Designation	Contact No.	Email ID
1	**Escalation Level 1**				
2	**Escalation Level 2**				
3	**Escalation Level 3**				

In case of change in any of the officials above throughout the currency of the contract, we shall submit the escalation matrix afresh.

13. We, hereby confirm that we will honour the Bids placed by us during the auction process, failing which we shall forfeit the EMD. We also understand that the Bank may debar us from participating in future tenders.

14. We undertake to submit the confirmation of last bid price and the price breakup as per the requirement of the Bank within 24 working hours of the completion of Reverse Auction or Commercial Opening, as applicable.

15. We hereby undertake that the proposed hardware / software to be supplied will be free of malware, free of any obvious bugs and free of any covert channels in the code (of the version of the application being delivered as well as any subsequent versions/modifications done) which may lead to any data leakage/compromise of the server/solution or any cyber security incident in future.

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16. We also undertake that:-
    (a) The Solution and Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to:
        (i) Inhibit the desires and designed function of the equipment.
        (ii) Cause physical damage to the user or equipment during the exploitation.
        (iii) Tap information resident or transient in the equipment/network.
    (b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software and any loss occurring due to the above may be recovered from the existing contracts.

17. We also undertake to submit the Non-Disclosure Agreement as per **Annexure 09** of this RFP if we are selected as the successful vendor, whenever sought by the Bank.

18. We also undertake that any modification of the content of any of the Annexure(s) may result in the disqualification of our Bid

19. We also undertake to submit the Information of the Bidder Company as per **Annexure 15** of this RFP if we are selected as the successful vendor, whenever sought by the Bank.

20. We confirm that none of our subsidiaries or associate or holding company or companies having common director/s or companies in the same group of promoters/ management or partnership firms/LLPs having common partners is owned by any Director or Employee of the Bank.

21. The following is the details of Share Holding structure of our Company and our Parent Company:

SL No.	Particulars of Share Holders	No. of shares held	Amount	Holding %

Shareholding structure of the Bidder as on 31.03.2025		
Particulars of Share Holders	**% of shares held**	**Registered Address of the share holding company/ Individual**

Bidder's Parent Company &/ Owner/Beneficial Owner Name: Registered Address of the Bidder's Parent Company:

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Shareholding structure of the Bidder's Parent Company as on 31.03.2025		
Particulars of Share Holders	**% of shares held**	**Registered Address of the share holding company/ Individual**

(if applicable)

Directors of the Company as on date -dd/mm/yyyy:

Sl. No.	Name of the Director	Designation

Date: _____
Place: _____

Yours faithfully

Signature of Authorized Signatory
Name of Signatory:
Seal of the Organization:

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Annexure 2 – Eligibility Criteria
(To be submitted on Bidder's letterhead)

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Dear Sir,

We confirm our Compliance of below Eligibility Criteria given in RFP: supply, implementation, and maintenance of MDM with MAM solution.

Sl. No.	ELIGIBILITY CRITERIA	SUPPORTING DOCUMENTS TO BE SUBMITTED	Compliance (Y/N)	Details of Reference submitted
1.	The product & services to be delivered should have local content of at least 60%. The individual products, services and works for which the concerned Ministry has notified that sufficient local capacity and competition is available, the local content for such items should be as per the latest notification released by the concerned ministry, Govt. of India	Certificate of local content verification as per annexure 10.		
2.	The bidder should be registered as a company in India as per Companies Act 1956/ 2013 OR Partnership Bidder registered under LLP Act, 2008, operating since last 5 years as on the last	Copy of the certificate of incorporation issued by The Registrar of Companies/ Partnership Deed etc.		

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	date of Bid Submission date of RFP.			
3.	a. The bidder should be either the Original Equipment Manufacturer (OEM) or their authorized representative in India. IAR/Agent/SI and the Principal/OEM/Solution Provider cannot bid simultaneously for the same Product in the same tender. If both the party bid for the RFP Bank will consider the OEM submission. b. If any product of Principal / Original Equipment Manufacturer (OEM) is being quoted in the tender, the OEM Company cannot bid for any other OEM's product. c. If an Indian Authorized Representative (IAR) submits bid on behalf of the Principal/OEM, the same IAR shall not submit a bid on behalf of another Principal/OEM in the same tender for the same item/product. In such case all the bids from the said IAR will be rejected. d. Joint Bids/ Bids by Consortium are not acceptable.	In case of authorized representative/partner of the primary product, MAF from OEM as per **Annexure-16** in their letter Head needs to be provided. (Name, designation, contact no & official mail id of the signing authority must be clearly mentioned in the MAF.) **OR** In case the bidder itself is OEM of any Item (e.g., App./hardware etc.), undertaking as per **Annexure-17** on their company's letter head should be provided.		
4.	Bidder should have minimum average annual turnover of **Rs. 7.50 Crores**. (Rupees Seven Crore and Fifty Lakh only) **(For MSE/Startup bidder(s): Rs. 04 Crores-Rupees Four Crore only)** during last 3 financial	Provide CA Certificate as per **Annexure- 06** and Audited Financial statements (Balance sheet and Profit & Loss statement) for last three (3) Financial years i.e., FY		

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	years i.e. FY2022-23 ,2023-24, 2024-25. This must be the individual company turnover and not that of any group of companies. The net worth of the Bidder should not be negative on 31st March of the previous financial year and should have not eroded by more than 30% (thirty percent) in the last three financial years (FY 2022-23, 2023-24, 2024-25)	2022-23, 2023-24, 2024-25. The CA certificate provided in this regard should be without any riders or qualification. For **MSE relaxation** in terms of prior turnover, Bidder should 1. Be Manufacturer of the offered product and give specific confirmation through undertaking on Letterhead to this effect at the time of bid submission. 2. Claim EMD exemption. 3. Credentials should be verifiable online through Udyam Registration website of Ministry of MSME as per the supporting documents uploaded during bidding process. 4. For Startup entities, Provide the Registration Certificate issued by DPIIT.		
5.	The bidder should not be involved in any litigation which threatens solvency of company.	Certificate is to be provided by the chartered accountant /statutory auditor, as per **Annexure-5.**		
6.	Bidder to provide undertaking and confirmation as per Annexure 1	Certificate is to be provided by Bidder on their Letterhead as per **Annexure- 1.**		

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7.	Bidder should have supplied, implemented and managed/managing minimum 5000 MDM license to at least one BFSI /PSU/ PSB/Private Bank/Govt. sector organization in India during last 5 years as on the last date of bid submission.	i. Copy of Purchase Order/Work Order/Agreement **and any one of the following documents out of ii, iii and iv.** ii. Satisfactory Performance Certificate from the Clients as per **Annexure 4**. iii. Email confirmation from the client containing all the required information. iv. Any document signed and stamped by the client organization mentioning completion of the respective work order. *Kindly note that Client's Email should be from their official Email IDs only, containing their name, designation & Mobile no. (soft copy of the emails to be sent at the email IDs mentioned in the bid document)* *Official E-Mail ID of client should be provided as and when required for verification.*		
8.	Bidder should have following certifications, IS/ISO 9001:2015 **IS/ISO/IEC 27001: 2022**	Relevant certificate is to be provided in this regard.		

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9.	Bidder to ensure that the proposed cloud (DC & DR) should be in india	Certificate issued by authorized signatory of the cloud service provider on its letter head to be submitted along with technical proposal. Bidder to countersign the same.		

NOTE:

In case any purchase order has been issued to the bidder by the Bank in respect of any other project/product and the same has not been delivered/executed even after the prescribed time period and is pending for execution as on date of bid, the bid of the respective bidder is liable for rejection.

1. Bidder should submit detailed response along with documentary proof for all of the above eligibility criteria. The eligibility will be evaluated based on the bid and the supporting documents submitted. Bids not meeting the above eligibility criteria will be rejected.
2. Technical Evaluation will be done by Bank's Tender Evaluation Committee and the decision of the committee will be final.
3. The eligibility, terms and conditions are in reverse order of precedence i.e. ATC shall supersede specific STC which shall supersede General Terms and Conditions ("GTC"), whenever there are any conflicting provisions.
4. Bidders to submit relevant documentary evidence for all parameters mentioned.
5. Providing any wrong information by the bidder will result in disqualification of the bidder. The Bank may cross check above parameters by any means / during site visit.
6. All Annexures must be on the letter head of the Bidder, except those which are to be provided by OEM/CA/third party.
7. **Integrity pact, Power of attorney/ and Bank Guarantee, if any, should be submitted in Original also. Non-receipt of Original Integrity Pact or Bank Guarantee may result in disqualification of the Bid**.
8. All third-party documents must be signed by their authorized signatory, and his/her designation, Official E-mail ID and Mobile no. should also be evident. The document providing the authorization of the signatory should be submitted to the Bank for all parties.
9. Bidder is also required to substantiate whether the person signing the document is authorized to do so on behalf of his company. Inability of the bidder to prove the genuineness/authenticity of any third-party document may make the bid liable for rejection.

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10. Government of India guidelines File no: F.8/78/2023-PPD dated 12.10.2023 and its amendments from time to time with respect to participation of demerged entities in public procurement opportunities will be applicable.

Date: _____
Place: _____

Signature of Authorized Signatory
Name of Signatory:
Seal of the Organization:

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Annexure 3 – Bidder's Information

(To be submitted on Bidder's letterhead)

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

S.N.	Information	Particulars / Response
1.	Company/Partnership/LLP Name	
2.	Identification Number (CIN/LLPIN, etc.)	
3.	Constitution	
4.	Date of Incorporation	
5.	Head Office Address	
6.	Registered Office address	
7.	GST No. PAN No.	
8.	Whether MSE (quote registration no. and date of registration, copy to be attached)	
9.	Bank Account Detail: Account Number, Account Name, IFSC, Bank Name	Account Number: Account Name: IFSC: Bank Name:
10.	Name, Designation, Tel. No/Mobile, E-Mail of the authorized signatory submitting the RFP (Please enclose the copy of board resolution)	Name: Designation: E-Mail ID: Contact: Other details:
11.	Specimen signature of authorized signatory	

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12.	Contact person's name, address, telephone number, mobile number, Fax Number, E-Mail ID. (give at least 2 contact person's details)	

Date: _____
Place: _____

Signature of Authorized Signatory
Name of Signatory:
Seal of the Organization:

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Annexure 4 – Performance Certificate

(To be provided on letter head of the issuing client)

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

Sir,

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

This is to certify that M/s _____ has successfully supplied and managed/managing _____ (No. and make of licenses) in our organization since_____(no. of years).

The services provided by the M/s _____ are satisfactory.

The certificate has been issued on the specific request of the company.

Date: _____
Place: _____
Signature of Authorized Signatory
Name of Signatory:
Designation:
Email ID:
Contact No:

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Annexure 5 - Litigation Certificate

(To be provided by Statutory Auditor/Chartered Accountant on their Letterhead)

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

This is to certify that M/s_____, a company incorporated under the Companies Act-1956 / Companies Act-2013/Partnership Bidder registered under LLP Act-2008 with its headquarters at, _____ is not involved in any litigation which threatens solvency of the company.

Date: _____
Place: _____

Signature of CA/Statutory Auditor
Signature of Authorized Signatory
Name of Signatory:
Designation:
Email ID:
Contact No:
Seal of Company:
UDIN No:

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Annexure 6 – Turnover Certificate

(To be provided by Statutory Auditor/Chartered Accountant on their Letterhead)

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

This is to certify that M/s_____, a company incorporated under the Companies Act-1956 / Companies Act-2013/ Partnership Bidder registered under LLP Act-2008 with its headquarters at, _____ has the following Turnover, Net Profit/Loss and Net worth. This information is based on the Audited Financial Statements for FY20__-__, FY20__-__ and FY20__-

Financial Year (last three FY)	Annual Turnover (in Rs.)	Net Profit/Loss (in Rs.)	Net Worth (in Rs.)
2022-23			
2023-24			
2024-25			

Date: _____

Place: _____

Note: Only Bidder Company's / Firm's figures need to be mentioned. (Not to include subsidiary, consortium, affiliate or group entities figures)

Signature of CA/Statutory Auditor
Name of CA/Statutory Auditor:
Designation:
Email ID:
Mobile/Telephone No:
Seal of Company:
UDIN No: (Online UDIN should mention the financial figures as per the table above)

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Annexure 7 – Performa for Integrity Pact

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Dear Sir,

I/We acknowledge that Punjab National Bank is committed to follow the principle of transparency equity and competitiveness as enumerated in the Integrity Agreement enclosed with the tender/bid document.
I/We agree that the Notice Inviting Tender (NIT) is an invitation to offer made on the condition that I/We will sign the enclosed integrity Agreement, which is an integral part of tender documents, failing which I/We will stand disqualified from the tendering process.
I/We acknowledge that THE MAKING OF THE BID SHALL BE REGARDED AS AN UNCONDITIONAL AND ABSOLUTE ACCEPTANCE of this condition of the NIT.
I/We confirm acceptance and compliance with the Integrity Agreement in letter and spirit and further agree that execution of the said Integrity Agreement shall be separate and distinct from the main contract, which will come into existence when tender/bid is finally accepted by Punjab National Bank. I/We acknowledge and accept the duration of the Integrity Agreement, which shall be in the line with Article 6 of the enclosed Integrity Agreement.
I/We acknowledge that in the event of my/our failure to sign and accept the Integrity Agreement, while submitting the tender/bid, Punjab National Bank shall have unqualified, absolute and unfettered right to disqualify the tenderer/bidder and reject the tender/bid is accordance with terms and conditions of the tender/bid.

Yours faithfully
(Duly authorized signatory of the Bidder)
To be signed by the bidder and same signatory competent / authorized to sign the relevant contract on behalf of Punjab National Bank.

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INTEGRITY AGREEMENT

(On Stamp paper of appropriate value)

This agreement is executed at Delhi on this ___ day of _____, 2025 between the **Punjab National Bank**, a body corporate, constituted under the Banking Companies (Acquisition & Transfer of Undertakings) Act, 1970 (Act No. V of 1970), and having its Head Office at Plot No. 4, Sector-10, Dwarka, New Delhi-110075, and amongst other offices its Centralised Procurement & Partnership Division (CPPD) at 5, Sansad Marg, New Delhi-110001, hereinafter referred to as **"The Principal"**, which expression shall mean and include, unless the context otherwise requires, include its representatives, successors, administrators and permitted assigns of **First Part** and;

M/s _____ (CIN No._____) a Company registered under the provisions of Companies Act, 1956/2013 and having its Registered Office at…… (Through Shri /Ms _____, (designation), as authorized vide its Board Resolution/Power of Attorney dated _____) hereinafter called **"The bidder/Contractor"**, which expression shall mean and include, unless the context otherwise requires, include its representatives, executors, administrators, successors and permitted assigns, of the **Second Part;**

Preamble

The principal intends to award, under laid down organizational procedures, contract/s for _____. The principal values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness/transparency in its relations with its Bidder(s) and/or contractor(s).

In order to achieve these goals, the principal will appoint Independent External Monitors (IEMs) who will monitor the tender process and the execution of the contract for compliance with the abovementioned principles.

Section 1- Commitments of the Principal

1. The principal commits itself to take all measures necessary to prevent corruption and to observe the following principles: -

   a. No employee of the principal, personally or through family members, will in connection with the tender for, or the execution of a contract, demand, take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.

   b. The principal will, during the tender process treat all Bidder(s) with equity and reason. The principal will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s)

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confidential/additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.

c. The principal will exclude from the process all known prejudiced persons.

2. If the Principal obtains information on the conduct of any of its employees which is a criminal offence under the BNS/PC Act, or if there be a substantive suspicion in this regard, the principal will inform the Chief Vigilance Officer and in addition can initiate disciplinary actions.

Section 2- Commitments of the Bidder(s) / Contractor(s)

1. The Bidder(s)/Contractor(s) commit themselves to take all measures necessary to prevent corruption during any stage of bid process/contract. The Bidder(s)/ Contractor(s) commit themselves to observe the following principles during participation in the tender process and during the contract execution.

    a. The Bidder(s)/ Contractor(s) will not, directly or through any other person or firm, offer promise or give to any of the Principal's employees involved in the tender process or the execution of the contract or to any third person any material or the other benefit which he/she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.

    b. The Bidder(s)/ Contractor(s) will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal, in violation of the Competition Act, 2002 (as amended from time to time). This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process.

    c. The Bidder(s)/ Contractor(s) will not commit any offence under the relevant BNS/PC Act; further the Bidder(s)/ Contractor(s) will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the Principal as part of the business relationship, regarding plans., technical proposal and business details, including information contained or transmitted electronically.

    d. The Bidder(s)/ Contractor(s) of foreign origin shall disclose the name and address of the Agents/representatives in India, if any similarly, the Bidder(s)/ Contractor(s) of Indian Nationality shall furnish the name and address of the foreign principals, if any. Further details as mentioned in the "Guidelines on Indian Agents of Foreign Suppliers" shall be disclosed by the Bidder(s)/ Contractor(s). Further, as mentioned in the Guidelines, all the payments made to the Indian agent/representative must be in Indian Rupees only.

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e. The Bidder(s)/ Contractor(s) will , when presenting their bid, disclose any and all payments made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.

f. Bidder(s)/ Contractor(s) who have signed the Integrity Pact shall not approach the Courts while representing the matter to IEMs and shall wait for their decision in the matter.

2. The Bidder(s)/ Contractor(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3 - Disqualification from the tender process and exclusion from future contracts.

If the Bidder(s)/ Contractor(s), before award or during execution has committed a transgression through a violation of Section 2, above or in any other form such as to put their reliability or credibility in question, the Principal is entitled to disqualify the Bidder(s)/ Contractor(s) from the tender process or take action as per the existing provisions of GFR, 2017, PC Act, 1988 and other Financial Rules/Guidelines etc.

Section 4- Compensation for Damages

1. If the Principal has disqualified the Bidder(s) from the tender process prior to the award according to Section 3, the principal is entitled to demand and recover the damages equivalent to Earnest Money Deposit/Bid Security.
2. If the Principal has terminated the contract according to Section 3, or the principal is entitled to terminate the contract according to Section 3, the principal shall be entitled to demand and recover from the Contractor liquidated damages of the contract value or the amount equivalent to Performance Bank Guarantee.

Section 5- Previous transgression

1. The Bidder declares that no previous transgression occurred in the last three years immediately before signing of this integrity pact with any other Company in any country conforming to the anti-corruption approach or with any Public Sector Enterprise or central/state government department in India that could justify his exclusion from the tender process.
2. If the Bidder makes incorrect statement on this subject, he can be disqualified from the tender process or action can be taken as per the procedure mentioned in "Guidelines on Banning of business dealing".

Section 6- Equal treatment of all Bidders/Contractors/Subcontractors

1. In case of sub-contracting, the principal contractor shall be solely responsible for the adherence to the provisions of Integrity Pact by the Sub-Contractor(s).

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2. The principal will enter into agreements with identical conditions as this one with all Bidders and Contractors.

3. The principal will disqualify from the tender process all the Bidders who do not sign this Pact or violate its provisions.

Section 7- Criminal charges against violating Bidder(s)/ Contractor(s)/ Subcontractor(s)

If the Principal obtains knowledge of conduct of a Bidder, Contractor or Subcontractor, or of an employee or a representative or an associate of a Bidder, Contractor or Subcontractor which constitutes corruption, or if the principal has substantive suspicion in this regard, the Principal will inform the same to the Chief Vigilance Officer.

Section 8- Independent External Monitor

1. The principal appoints competent and credible Independent External Monitors (IEM)

Sl.	Name of IEM	E-mail
1	Sh. Madhusudan Prasad (IAS-Retd.)	mprasad23@gmail.com
2	Sh. Rishi Kumar Shukla (IPS-Retd.)	rishi_2000in@yahoo.com

for this Pact after approval by the Central Vigilance Commission. The task of the Monitor is to review independently and objectively, whether and to what extent the parties comply with the obligations under the agreement. The IEMs are not to be contacted for generic tender related queries, for which queries may be directed to the Bank Officials. Bank reserves its right to appoint any other person as Independent External Monitor in terms of the applicable government notifications or guidelines issued from time to time.

2. The Monitor is not subject to instructions by the representatives of the parties and performs his/her functions neutrally and independently. The Monitor would be provided access to all documents/records pertaining to the contract for which a complaint or issue is raised before them, as and when warranted. However, the documents/ records/ information having National Security implications and those documents which have been classified as Secret/Top Secret are not to be disclosed. It will be obligatory for him/her to treat the information and documents of the Bidders/Contractors as confidential. He/she reports to the Managing Director and CEO, Punjab National Bank.

3. The Bidder(s)/ Contractor(s) accepts that the Monitor has the right to access without restriction to all project documentation of the principal including that provided by the Bidder(s)/Contractor(s). The Bidder(s)/Contractor(s) will also grant the Monitor, upon his/her request and demonstration of a valid interest, unrestricted and

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unconditional access to their project documentation. The same applies to Sub-contractors.

4. The Monitor is under contractual obligation to treat the information and documents of the Bidder(s)/Subcontractor(s) with confidentiality. The Monitor has also signed declarations on "Non-Disclosure of Confidential Information" and of "Absence of Conflict of Interest". In case of any conflict of interest arising at a later date, the IEM shall inform MD & CEO, Punjab National Bank and recuse themselves from that case.
5. The Principal will provide to the Monitor with sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the principal and bidder/Contractor. The parties offer to the Monitor the option to participate in such meetings.
6. As soon as the Monitor notices, or believes to notice, a violation of this agreement, he/she will inform the Management of the Principal and request the Management to discontinue or take corrective action or to take other relevant action. The monitor can in this regard, submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action, or tolerate action.
7. The Monitor will submit a written report to the MD & CEO, Punjab National Bank within 8 to 10 weeks from the date of reference or intimation to him by the principal and, should the occasion arise, submit proposals for correcting problematic situations.
8. If the Monitor has reported to the MD & CEO, Punjab National Bank, a substantiated suspicion of an offence under relevant BNS/PC Act, and the MD & CEO, PNB has not, within the reasonable time taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner.
9. The word '**Monitor**' would include both singular and plural.

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Section 09- Pact Duration

This Pact begins when both parties have legally signed it. It expires for the Contractor 12 months after the last payment under the contract, and for all other Bidders, 6 months after the contract has been awarded. Any violation of the same would entail disqualification of the bidders and exclusion future from business dealings.

If any claim is made/lodged during this time, the same shall be binding and continue to be valid despite the lapse of this pact as specified above, unless it is discharged/ determined by MD & CEO, PNB.

Section 10- Other provisions

1. This agreement is subject to Indian Law. The place of performance and jurisdiction is the "Place of award of work".
2. The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of to the extant laws in force relating to any civil or criminal proceedings.
3. Changes and supplements as well as termination notices need to be made in writing. Side agreements have not been made.
4. If the Bidder(s)/Contractor(s) is a partnership or a consortium, this agreement must be signed by all partners or consortium members.
5. Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to their original intentions.
6. Issues like warranty/Guarantee etc. shall be outside the purview of IEMs.
7. In the event of any contradiction between the Integrity Pact and its Annexure, the Clause in the Integrity Pact will prevail.

(For & On behalf of the principal) **(For & On behalf of Bidder/Contractor)**

(Office Seal) **(Office Seal)**

Place……

Date……

Witness 1: Signature, Full Name and Address

Witness 2: Signature, Full Name and Address

Annexure 8 – Performa for the Bank Guarantee
(To be stamped in accordance with stamp act)

Ref: Bank Guarantee :

Date

To

PUNJAB NATIONAL BANK

The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

Dear Sir,

In accordance with your bid reference no. GEM/B/2025/_____ dated _____M/s_____ having its registered office at _____herein after

Called 'bidder') wish to participate in the said bid for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

An irrevocable Financial Bank Guarantee (issued by a nationalized / scheduled commercial Bank) against Earnest Money Deposit amounting to Rs._____ Rupees (in words_____) valid up to _____ is required to be submitted by the bidder, as a condition for participation in the said bid, which amount is liable to be forfeited on happening of any contingencies mentioned in the bid document.

M/s_____ having its registered office at _____ has undertaken in pursuance of their offer to Punjab National Bank (hereinafter called as the beneficiary) dated _____ has expressed its intention to participate in the said bid and in terms thereof has approached us and requested us_____ (Name of Bank)_____ (Address of Bank) to issue an irrevocable financial Bank Guarantee against Earnest Money Deposit (EMD) amounting to Rs /- Rupees (in words_____) valid up to_____.

We, the _____ (Name of Bank)_____ (Address of Bank) having our Head office at _____ therefore Guarantee and undertake to pay immediately on first written demand by Punjab National Bank, the amount Rs._____ Rupees (in words_____) without any reservation, protest, demur and recourse in case the bidder fails to Comply with any condition of the bid or any violation against the terms of the bid, Without the beneficiary needing to prove or demonstrate reasons for its such demand. Any Such demand made by said beneficiary shall be conclusive and binding on us irrespective of any dispute or difference raised by the bidder.

This guarantee shall be irrevocable and shall remain valid up to _____. If any further extension of this Guarantee is required, the same shall be extended to such required period on receiving instructions in writing, from _____, on whose behalf guarantee is issued.

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"Not withstanding anything contained herein above, Our liability under this Bank guarantee shall not exceed Rs _____ Rupees (in words_____).

This Bank guarantee shall be valid up to_____ *…….(being the date of expiry of the Guarantee) (validity period)*

Further, a claim period of ……days after validity period (claim period) is available to you to make a demand under the Bank Guarantee, in respect of a cause of action which has arisen during the validity period only.

. We are liable to pay the guaranteed amount or any part thereof under this Bank guarantee only if you serve upon us a written claim or demand, on or before hours (Indian Standard Time) where after it ceases to be in effect in all respects whether or not the original Bank guarantee is returned to us."

In witness whereof the Bank, through its authorized officer has set its hand stamped on this_____ Day of _____2025 at _____

Name of signatory
Designation
Email ID:
Contact No.
Bank Common Seal

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Annexure 9 – NDA (Non-Disclosure Agreement)

(On Stamp paper of appropriate value)

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

This Confidentiality–cum-Nondisclosure Agreement is entered into at Delhi on this_____day of_____,2025, by and between,

Punjab National Bank, a body corporate, constituted under the Banking Companies (Acquisition & Transfer of Undertakings) Act, 1970, having its Head Office at Plot No. 4, Sector 10, Dwarka, New Delhi-110075 and amongst other office, its Centralised Procurement & Partnership Division (CPPD) at 5, Sansad Marg, New Delhi-110001, hereinafter called **"the purchaser/Bank"**, which expression shall, unless repugnant to the context, include its representatives, successors, administrators and assigns of the **ONE PART**;

AND

M/s _____ (CIN- _____), a company incorporated under the provisions of Companies Act, 1956/2013, having its Registered Office at _____ (Through Shri /Ms _____, (hereinafter "**Vendor**", "**consultant**", "**service provider**") which expression shall include its heirs, representatives, successors, executors, administrators and permitted assigns of the **OTHER PART.**

M/s _____ /Vendor and the Bank shall hereinafter jointly be referred to as "Parties" and individually as a "Party".

In this Agreement, "**Affiliate**" means any entity which from time to time Controls, is Controlled by or is under common Control with the relevant party or entity, where "Control" means having the ability (including, without limitation, by means of a majority of voting rights or the right to appoint or remove a majority of the board of directors) to control the management and policies of an entity.

WHERE AS: -

Vendor inter-alia is engaged in the business of _____**.** In the course of such discussions and negotiations and subsequent agreement for the above purpose, it is anticipated that either party may disclose or deliver to the other party certain of its confidential or proprietary information for the purpose of enabling the other party to evaluate the feasibility of such a business relationship.

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The parties have entered into this Agreement, in order to assure the confidentiality of such confidential and proprietary information in accordance with the terms of this Agreement. As used in this Agreement, the party disclosing Proprietary Information (as defined below) is referred to as the 'Disclosing Party' and will include its affiliates and subsidiaries, the party receiving such Proprietary Information is referred to as the 'Recipient' and will include its affiliates and subsidiaries.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. Interpretation:

In this Agreement "Confidential Information" means all information belonging to a Party that is or has been disclosed to one Party (the "Receiving Party") by the other Party (the "Disclosing Party") in connection with the business transacted/ to be transacted between the Parties. Confidential information shall also include any copy, abstract, extract, sample, reports, statements, maps, graphics, note or module thereof. The Receiving Party may use the Confidential Information solely for and in connection with the business transacted/ to be transacted between the Parties. The term 'confidential information' shall include all written or oral information (including information received from third parties that the 'Disclosing Party' is obligated to treat as confidential) that is (i) clearly identified in writing at the time of disclosure as confidential and in case of oral or visual disclosure, or (ii) that a reasonable person at the time of disclosure reasonably would assume, under the circumstances, to be confidential. Confidential information shall also include, without limitation, software programs, technical data, methodologies, know-how, processes, designs, new products, developmental work, marketing requirements, marketing plans, customer names, prospective customer names, customer information and business information of the 'Disclosing Party.

Confidential information shall also include, without limitation, information identified as being proprietary and/or confidential or pertaining to pricing, marketing plans or strategy, volumes, financial or technical or service matters or data, employee/ agent/ consultant/ officer/ director related personal or sensitive data software programs, technical data, passwords encryption tools, methodologies, know-how, processes, designs, new products, development work, marketing requirements, marketing plans, disaster recovery plans, customer names, prospective customer names, customer information, customer databases, business information and any information which might reasonably be presumed to be proprietary or confidential in nature of the "Disclosing Party".

Notwithstanding the foregoing, "Confidential Information" shall not include any information which the Receiving Party can show: (a) is now or subsequently becomes legally and publicly available without breach of this Agreement by the Receiving Party, (b) was rightfully in the possession of the Receiving Party without any obligation of confidentiality prior to receiving it from the Disclosing Party, (c) was rightfully obtained by the Receiving Party from a source other than the Disclosing Party without any obligation of confidentiality, (d) was developed by or for the Receiving Party independently and without

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reference to any Confidential Information and such independent development can be shown by documentary evidence, or

(e) is disclosed pursuant to a direction of a judicial authority, statutory or regulatory authority or government as so required by such order, provided that the Receiving Party shall, unless prohibited by law or regulation, promptly notify the Disclosing Party of such order and afford the Disclosing Party the opportunity to seek appropriate protective order relating to such disclosure.

As used in this Agreement, the term 'Proprietary Information' shall mean all confidential or Proprietary Information designated as such in writing by the Disclosing Party, whether by letter or by the use of an appropriate prominently placed Proprietary stamp or legend, prior to or at the time such confidential or Proprietary Information is disclosed by the Disclosing Party to the Recipient. Notwithstanding the forgoing, information which is orally or visually disclosed to the recipient by the Disclosing Party or is disclosed in writing unaccompanied by a covering letter, proprietary stamp or legend, shall constitute proprietary information if the disclosing party, within 10 (ten) days after such disclosure, delivers to the Recipient a written document or documents describing such Proprietary Information and referencing the place and date of such oral, visual or written disclosure and the names of the employees or officers of the Recipient to whom such disclosure was made.

The Proprietary Information" shall include, but not be limited to, domain names, trade secrets, copyrights, ideas, techniques, know-how, inventions (whether patentable or not), and/or any other information of any type relating to designs, configurations, documentation, policies, board notes, Circulars, recorded data, schematics, layouts, source code, master works, master databases, algorithms, flow charts, formulae, works of authorship, mechanisms, research, manufacture, improvements, assembly, installation, intellectual property, and the information concerning the Parties' actual or anticipated business, research or development, or which is received in confidence by the disclosing party to the Recipient.

2. Confidentiality:

a) Each party shall keep secret and treat in strictest confidence all proprietary and confidential information it has received about the other party or its customers and will not use the confidential or proprietary information otherwise than for the purpose of performing its obligations under said agreement in accordance with its terms and so far as may be required for the proper exercise of the Parties' respective rights under this agreement.

b) Each party may disclose confidential information to its employees, officers, consultants or agents only to the extent that such disclosures are required to exercise its rights and perform its obligations under the agreement or attachments. Each party shall take such steps as may be reasonably requested by the other or otherwise required to ensure that the aforementioned persons acknowledge and comply with the use and confidentiality restrictions contemplated under this Agreement

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3. **Non-Disclosure of Proprietary and confidential Information: For the period during the Agreement or its renewal, the Recipient will:**

a) Use such confidential and Proprietary Information only for the purpose for which it was disclosed and without prior written authorization of the Disclosing Party shall not use or exploit such confidential and Proprietary Information for its own benefit or the benefit of others.

b) Protect confidential and Proprietary Information against disclosure to third parties in the same manner and with the reasonable degree of care, with which it protects its confidential information of similar importance: and

c) Limit disclosure of confidential and Proprietary Information received under said agreement to persons within its organization and to those 3rd party contractors performing tasks that would otherwise customarily or routinely be performed by its employees, who have a need to know such confidential and Proprietary Information in the course of performance of their duties and who are bound to protect the confidentiality of such Proprietary Information.

4. **Limit on Obligations:**

The obligations of the Recipient specified in clause 3 above shall not apply and the Recipient shall have no further obligations, with respect to any Proprietary **and Confidential** Information to the extent that such Proprietary Information:

a) is generally known to the public at the time of disclosure or becomes generally known without any wrongful act on the part of the Recipient,

b) is in the Recipient's possession at the time of disclosure otherwise than as a result of the Recipient's breach of a legal obligation.

c) becomes known to the Recipient through disclosure by any other source, other than the Disclosing Party, having the legal right to disclose such Proprietary Information.

d) Is independently developed by the Recipient without reference to or reliance upon Proprietary Information; or

e) Is required to be disclosed by the Recipient to comply with applicable laws or governmental regulation, provided that the recipient provides prior written notice of such disclosure to the Disclosing Party and takes reasonable and lawful actions to avoid and/or minimize the extent of such disclosure.

5. **Return of Documents:**

The Recipient shall, upon the request of the Disclosing Party, in writing, return to the Disclosing Party all drawings, documents and other tangible manifestations of Proprietary **and Confidential** Information received by the Recipient pursuant to this Agreement (and all copies and reproductions thereof) within a reasonable period. Each party agrees that in the event it is not inclined to proceed further with the engagement, business discussions and negotiations, or in the event of termination of this Agreement, the Recipient party will promptly return to the other party or with the consent of the other party, destroy the Proprietary **and Confidential** Information of the other party.

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6. Communications:

Written communications requesting or transferring Proprietary Information under this Agreement shall be addressed only to the respective designees as follows (or to such designees as the parties hereto may from time to time designate in writing) Punjab National Bank,

Attn: _____ Attn: _____

1…….

M/s _____ Attn: _____

1……...

7. Term:

The Agreement is valid from _____ to _____. Either party may terminate the Agreement by giving prior written notice of 30 days to other party. The obligation pursuant to Clause 2 and 3 (Confidentiality and Non-Disclosure of Proprietary Information) will survive event after termination of the agreement dated _____. The obligations of each party hereunder will continue and be binding irrespective of whether the discussion between the parties materialize into a specific understanding/ business relationship or not, however, this agreement on Confidentiality and Non- Disclosure of Confidential Information) is perpetual basis even after termination/ expiry of the Agreement

Nothing herein contained shall be construed as a grant by implication, estoppel, or otherwise or a license by either party to the other to make, have made, use or sell any product using Proprietary Information or as a license under any patent, patent application, utility model, copyright or any other industrial or intellectual property right covering same.

8. Damages:

Both parties acknowledge that the proprietary & Confidential Information coming to the knowledge of the other may relate to and/or have implications regarding the future strategies, plans, business activities, methods, processes and or information of the parties, which afford them certain competitive and strategic advantage. Accordingly, neither party shall use the Confidential Information in a manner that will jeopardise or adversely affect in any manner such future strategies, plans, business activities, methods, processes, information, and/or competitive and strategic advantage of the Disclosing Party.

The provisions of this Agreement are necessary for the protection of the business goodwill of the parties and are considered by the parties to be reasonable for such purposes. Both the parties agree that any breach of this Agreement will cause substantial and irreparable damages to the other party and, therefore, in the event of such breach, in additional to other remedies, which may be available, the party violating the terms of Agreement shall be liable for the entire loss and damages on account of such disclosure.

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Vendor agrees to indemnify each other against all loss suffered due to breach of terms of this agreement and undertakes to make good the financial loss caused directly or indirectly by claims brought about by its customers or by third parties.

The parties hereto acknowledge and agree that in the event of a breach or threatened breach by the other of the provisions of this Agreement, the party not in breach will have no adequate remedy in money or damages and accordingly the party not in breach shall be entitled to injunctive relief against such breach or threatened breach by the party in breach.

No failure or delay by either party in exercising or enforcing any right remedy or power hereunder shall operate as a waiver thereof, nor shall any single or partial exercise or enforcement of any right, remedy or power preclude any further exercise or enforcement thereof or the exercise of enforcement of any other right, remedy or power

9. Permitted disclosure:

The provisions of paragraph 2 shall not restrict any disclosure required by law or by any court of competent jurisdiction, the rules and regulations of any recognized stock exchange or any enquiry or investigation by any governmental, official or regulatory body which is lawfully entitled to require any such disclosure provided that, so far as it is lawful and practical to do so prior to such disclosure, the Receiving Party shall promptly notify the other party of such requirement with a view to providing the opportunity for the Provider to contest such disclosure or otherwise to agree the timing and content of such disclosure.

10. Ownership of Information:

Except to the extent as agreed herein, the Confidential Information and copies thereof, in whatsoever form shall always remain the property of the Disclosing Party or its clients and its disclosure shall not confer on the Receiving Party any rights (including any intellectual property rights) over the Confidential Information whatsoever beyond those contained in this Agreement.

11. No Representation:

Neither the disclosure, transmission receipt or exchange of Confidential Information nor anything else in this Agreement will constitute an offer by or on behalf of the Disclosing Party or be construed as soliciting any business or organization changes or any assurance of any business commitment or an inducement to incur / undertake any obligations not specified herein and neither Party will be under any obligation to accept any offer or proposal which may be made by the other or on behalf of such other party.

12. Remedies and Relief:

The parties hereto acknowledge that remedies at law may be inadequate to protect the Disclosing Party or its clients against any actual or threatened breach of this Agreement by the Receiving Party, and, without prejudice to any other right and remedies otherwise

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available to the Disclosing Party or its clients, the Receiving Party agrees that Disclosing Party has a right to seek injunctive relief in its favor upon proof of actual damage and upon establishment of the fact that such actual damage has taken place due to reasons directly attributable upon the Receiving Party. Such injunctive relief shall be in addition to any other remedies available hereunder, whether at law or equity. The Disclosing Party shall be entitled to recover its cost and fees, including legal expenses, incurred in obtaining any such relief. Further, in the event of litigation relating to this Agreement, the disclosing Party shall be entitled to recover its cost and expenses including legal expenses.

13. No Assignment:

This Agreement shall not be assigned by either Party, by operation of law or otherwise, without the prior written consent of the other Party. This Agreement shall insure to the benefit of and will be binding upon the Parties' respective successors and permitted assigns.

14. Severability:

In the event that any of the provisions contained in this Agreement is found to be invalid, illegal or unenforceable in any respect by a Court of competent jurisdiction, the validity, legality, or enforceability of the remaining provisions contained in this agreement will not be in any way affected or impaired by such a finding.

15. Delay or Waiver:

No delay or failure of either Party in exercising any right hereunder and no partial or single exercise thereof shall be deemed of itself to constitute a waiver or an expectation of non-enforcement of such right or any other rights hereunder. No waiver of any provision of this Agreement shall be valid unless the same is in writing and signed by the party against whom such waiver is sought to be enforced. A waiver or consent given by either Party on any one occasion is effective only in that instance and will not be construed as a bar to or waiver of any right on any other occasion.

16. Notices:

Notices as required by this Agreement shall be sent to the Parties at the addresses mentioned first herein above or such other addresses as the Parties may designate from time to time and shall be sent by certified or registered mail with acknowledgement due on receipt.

17. Arbitration & Governing Law:

All disputes or differences whatsoever arising between the Parties out of or in relation to the construction, meaning and operation or effect of the RFP Documents/PO/SLA or breach thereof shall be settled amicably. If, however, the Parties are not able to solve them amicably, the same shall be settled by arbitration in accordance with Arbitration and Conciliation Act, 1996. The matter may be referred to a Sole Arbitrator to be appointed mutually by the parties and the award made in pursuance thereof shall be binding on the Parties. If the Bank and vendor fails to appoint sole arbitrator mutually, then the arbitrator

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shall be appointed in accordance with the Arbitration and Conciliation Act-1996. Any matter relating to or incidental to arbitration will be subject to the exclusive jurisdiction of courts at Delhi.

The vendor shall continue to work under the Contract during the arbitration proceedings unless otherwise directed in writing by the Bank or unless the matter is such that the work cannot possibly be continued until the decision of the arbitrator or the umpire, as the case may be, is obtained. However, during such a contingency, the Bank shall be entitled to make alternative arrangements to tackle the situation in any manner it deems fit, at the cost of the bidder/vendor which may also be adjusted by the Bank from the Performance Bank Guarantee, being treated as default so that the business of the Bank is not disrupted.

The venue of the arbitration shall be Delhi only, and the language of the arbitration will be English.

18. Indemnity:

Service Provider shall indemnify the PNB from all claims including third party claims, causes of action, suits, damages or demands, whatsoever, arising out of breach of this Agreement by the indemnifying party as and when such claims, actions, damages or demands becomes payable under law including any governmental, regulatory, judicial or quasi-judicial determination.

19. Modification/Amendment:

Modification to any of the provisions of this Agreement shall be void unless it is writing and duly executed by all the Parties.

20. Miscellaneous

a. This Agreement shall not be modified, changed or discharged, in whole or in part, except by a further Agreement in writing signed by both the parties.
b. This Agreement will be binding upon and ensure to the benefit of the parties hereto and it also includes their respective successors and assigns.
c. Each party will bear its own costs in connection with the activities undertaken in connection with this Agreement.
d. Nothing in this Agreement is intended to confer any rights/ remedies under or by reason of this Agreement on any third party.
e. The Agreement shall be construed and interpreted in accordance with the laws prevailing in India.
f. The Confidential terms of the SLA to be executed between the parties shall be read as part and parcel of this Agreement. This Agreement supersedes all prior discussions and writings with respect to the Confidential Information and constitutes the entire Agreement between the parties with respect to the subject matter hereof. If any term or provision of this Agreement is determined to be illegal, unenforceable, or invalid in whole or in part for any reason, such illegal, unenforceable, or invalid provisions or part(s) thereof shall be stricken from this Agreement, and such provision shall not affect the legality, enforceability, or validity of the remainder of this Agreement.

This Agreement may be executed in counterparts, each of which when taken together shall constitute one and the same agreement.

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That the contents of the Agreement have been read over and translated into vernacular language [name of the language of the vendor] and vendor having understood the contents thereof subscribe(s) to these presents.

IN WITNESS WHEREOF, the Parties hereto have set their respective signatures by their duly authorized representatives as of the date and day first mentioned above

Signed and delivered by:	Signed and delivered by:
PUNJAB NATIONAL BANK	**M/s _____.**
Signed by	Signed by
Full Name: Designation **Witnesses:** 1) (sign) Name Address 2) (sign) Name Address	Full Name: Designation

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Annexure 10 – Certificate of Local Content

(to be submitted on letter head of the Bidder)

Date: dd/mm/**2025**

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Dear Sir,

1. In line with Government Public Procurement Order No. P-45021/2/2017-PP (BE-II) dated 16.09.2020, Revised Order dated 19.07.2024 and Public Procurement (Preference to Make in India) Order 2019 for Cyber Security Products F. No. 1(10)/2017-CLES dated 06.12.2019 for the list of indicative category of Cyber Security Products by Ministry of Electronics and Information Technology and its amendments, we hereby certify that we M/s _____ are local supplier/ service provider meeting the requirement of minimum local content i.e., _____% against Punjab National Bank Tender No……. dated……. We qualify as a _____ Class-I local supplier/ service provider. Details of location at which local value addition will be made as follows: _____.

2. We also understand, false declarations will be in breach of the code of integrity under rule 175(1)(i)(h) of the General Financial Rules for which a Service Provider or its successors can be debarred for up to two years as per Rule 151(iii) of the General Financial Rules along with such other actions as may be permissible under law.

3. We have submitted the details indicating total cost value of inputs used, total cost of inputs which are locally sourced and cost of inputs which are imported, directly or indirectly with the commercial proposal.

Date: _____
Place: _____
Signature of Authorized Signatory
Name of Signatory:
Designation:
Email ID:
Contact No:
Seal of Company:
UDIN No (if applicable):

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Annexure 11 – Performa of the Commercial Bid

(To be submitted on Bidder's letterhead)

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Table A License cost

Sr. No.	Number of User Based licenses to cater 50000 devices (subscription Basis) A	Unit cost per year B	Total license Cost (In. Rs.) C = A*B*5(years)
1.	25000		

Table-B One time implementation cost

Sr. No.	Details	Qty A	Unit rate B	Cost (In. INR) C=A*B
1.	One time implementation cost, if any	25000 license/50000 devices		

Table-C: - L1 Resource Cost

Sr. No.	Particulars	Quantity A	Per year cost B	Yearwise Total Resource cost in INR C =A* B
1.	1st year	1		
2.	2nd year	1		
3	3rd year	1		
4	4th year	1		
5	5th year	1		

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Total Resource Cost (1+2+3+4+5)	

Note: Yearly Resource cost should be quoted in the range from 0 to 10% above the previous year cost.

Table D Summary of Total Cost

Sr. No.	Particulars	Total Cost of relevant table in INR	GST (%)	GST amount	Total Cost with GST (in INR)
1.	Table-A (Total license Cost)				
2.	Table-B One time implementation cost				
3	Table-C Resource Cost				
4	Grand Total Cost (1+2+3)				

Notes:

1. The Price discovered through RFP will be valid for the entire contract period.
2. The rates quoted in commercial bid should be inclusive of all taxes including GST. However, GST shall be paid to the bidder on actual basis at the rate applicable. The rate of applicable GST should be informed and charged separately in the invoice generated for supply of the product.
3. Bank is not bound to place any minimum order for any item.
4. In addition to the initial order placed, Bank may place subsequent orders for any item, if required, at any time during the contract period, at the unit rate

Date: _____

Place: _____
Signature of Authorized Signatory
Name of Signatory:
Seal of the Organization:

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Annexure 12 - Certificate Regarding Land Border Clause by OEM.

(To be provided on the Letter head of the OEM duly signed & stamped by their Authorized Signatory.)

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Sir,

We M/s _____, having its registered office at_____ OEM of _____(item), offered in this RFP, hereby by undertake that we have read the clauses stated in the Office Memorandum issued by Ministry of Finance, Government of India on the Insertion of Rule 144 (xi) in the General Financial Rules (GFRs), 2017 dated 23 July 2020 and amendments & clarifications hereto regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries.

(Strike off whichever is not applicable):

We certify that we are not from such a country and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority.

OR

We are from such a country and are registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority.

We hereby certify that we fulfil all requirements in this regard and is eligible to be considered.

If at any time our undertaking is found false or non-compliant with the above order of the Ministry of Finance, Bank may immediately terminate the contract and may take legal action in accordance with the law.

Date: _____
Place: _____
Signature of Authorized Signatory:
Name of Signatory:
Designation:
Email ID:
Contact No:
Seal of Company:

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Annexure 13 – Authorization Letter for Authorized Signatory

(To be provided on letter head of each OEM/OSD)

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

Sir,

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

I, _____(Name of the Director (Board Member)/Company Secretary/Equivalent Authorized Board member),_____(Designation) hereby undertake that _____(name of the official),_____(Designation), is authorized to issue all the required documents under his/her signature as mentioned in this RFP for participation in the captioned RFP process

The signature of _____(name of the authorized signatory) is attested herewith

Signature of Bid Signing Authority

Date: _____
Place: _____
Yours faithfully

Signature of Director/Company Secretary/Equivalent Authorized Board Member
Name of the Signatory:
Designation:
Seal of Company:

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Annexure 14 – Technical Specifications of the MDM license

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Sl. No.	Specification	Compliance (Yes/No)	Remarks (if any)
	MDM		
1.	The delivery model of the solution should be SaaS based model Mobility Solution (Mobile Device Management & Mobile Application Management).		
2.	The solution should support High Availability and Disaster recovery irrespective of Delivery model.		
3.	The solution should be capable enough to scale in Size in case additional devices are enrolled for Management.		
4.	The solution should Capture auditing events from enrolled devices to analyze suspicious activities on user device.		
5.	The solution Should fix all audit findings reported by the bank internal and external auditors within seven days from the date of reporting by the bank.		
6.	VAPT (Vulnerability Assessment and Penetration Testing) certification for MDM/MAM and SOC2 (Soc for Service Organizations: Trust Services Criteria.		
7.	The solutions, including the software supplied, should be upgraded to the new version released by the OEM if any within one week. Patches need to be put in the production environment after taking the necessary configuration and other needed backups. If there is any issue in the production environment, patches should be reverted.		
8.	Testing the BCP solution between DC and DR should be done as per bank policy.		

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9.	Solution should support RESTful APIs for reporting and logging, enabling you to integrate this data into your own custom solutions or third-party tools.		
10.	The solution should have the ability to build a customized workflow structure; with required number of workflow agents appropriate to organization needs.		
11.	It should always report exact details of enterprise mobile assets by leveraging built-in dashboards, reports, and alerts. Provides user, device and profile details through dashboard and customizable reports.		
12.	The solution should provide cross-platform device management, with enterprise directory integration, role-based access control and content delivery. Solution should be able to restrict admins to view & manage the devices they have rights for.		
13.	The solution should allow organizations to create policies for admins to have role-based access to admin consoles and should provide detailed audit reports.		
14.	The solution should allow organizations to manage supported devices from cloud. The solution should provide a seamless integration between Cloud & on-premises server for MDM tunnelling.		
15.	The solution should allow the admin to send custom notifications, terms and conditions, and organizational messages to the end users.		
16.	The solution should allow organizations to have a common inventory for the devices enrolled.		
17.	The solution should allow configuring security policies for all major device platforms like IOS, Android etc.		
18.	The solution should support zero trust security model with continuous verification and authentication as needed.		
19.	The solution should support integration with any Identity Management solution.		
20.	The solution should enable SSO for a wide range of applications, simplifying user access to multiple services with a single set of credentials. Solution support SSO for all platforms.		
21.	The solution should support providing additional capabilities for group management and		

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	application provisioning, making it easier to manage users and their access.		
22.	The solution should support seamless integration with the on-premises Microsoft Active Directory Solution.		
23.	Solution should support Implementing a baseline of security policies for protecting user identities.		
24.	The solution should support simplify security setup with recommended settings.		
25.	The solution should support real-time information on authentication attempts for better visibility and troubleshooting.		
26.	Solution should support a remote control to access the device for troubleshooting.		
27.	The solution should support integration with native application of the Bank.		
28.	The solution should act as a centralized repository for all the devices & users registered to it.		
29.	The solutions should support providing access to websites and applications along with security features and SSO. All the necessary support should be provided to make applications, URLs etc. to make it accessible through MDM/MAM.		
30.	The solution should allow organizations to restrict users from performing only designated activities.		
31.	The solution should be able to seamlessly integrate with Industry rated SIEM solutions for logging, monitoring & generate security alerts.		
32.	The solution should provide an admin users login with an option to receive MFA code.		
33.	The solution must monitor device compliance with reporting and analytics, allowing for proactive security measures.		
34.	The solution should support Audit and activity logs: Retrieve historical data for auditing and forensic analysis for one year. Further, logs must be stored in Bank's premises on a regular basis to ensure that Bank does not lose/miss any logs during the operation for a period complying to Bank policy. For maintaining the logs in Bank's premises, necessary storage will be provided by the bank.		
35.	The solution must support role-based access control and multi-admin approval to perform critical tenant level tasks.		

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36.	Centralized event log to capture all device and administrative events (logins, policy changes, application updates, configuration updates, etc.)		
37.	The solution should have pre-configured view (Compliance, asset management, applications, email, content, certificates, encryption etc.) which gives a holistic view for admins.		
38.	The solution should support Detailed logs of device configuration changes and deployments help administrators monitor the settings and profiles applied to managed devices.		
39.	The solution should support generating compliance reports that provide insights into device compliance with organizational policies and security settings.		
40.	The solution should be able to integrate with on-premises components like Microsoft Active Directory, Certificate Authority and Federation services (ADFS) to centralize Authentication.		
41.	The solution should have APIs so that third party automation integration can be done in case required.		
42.	It should support the enrolment of mobile & Tabs based on various OS such as IOS, Android etc.		
43.	The solution should support the creation of Compliance Policies for mobiles and Tabs based on various OS such as IOS and Android OS etc. like PIN/Biometric Set, OS Version etc. for device enrolment.		
44.	It should allow compliance checks on the enrolled devices based on device status (jailbreak, rooted, patch level, password complexity, encryption etc.), user status (group membership).		
45.	The solution should allow admin to create policies to restrict enrolment of devices based on conditions like: 1.No of device per user 2. Device OS Version 3.Device Ownership (corporate and personal).		
46.	The solution should allow admins to enrol devices using Zero Touch provisioning with minimal or no interaction to end user devices by IT.		
47.	The solution should allow configuring Device level security policies for all major device platforms like IOS, Android etc.		
48.	The solution should support managing all devices and configuration of conditional access policies from single console.		

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49.	It should allow mobile administrators to enable policy controls from passwords and application restrictions, certificate distribution and remote actions like lock or wipe etc.		
50.	It should provide prevention of enterprise data loss and elimination of privacy concerns by separating organization/corporate and personal data. Organizational/corporate data to be removed from the enrolled device, if the license has been removed for the user.		
51.	The solution should support selective and full wipe of corporate data after certain No. of Wrong PIN, inactivity or offline status		
52.	The solution should support logging user activity on managed devices, tracking login and application usage, which is valuable for security and productivity analysis.		
53.	The solution should detect compromised devices and force action against them. Solution detects compromised devices like “jailbroken” and “rooted” Android devices which is altered from its original configuration etc. should be detected and action should be initiated.		
54.	The solution should capture auditing events from devices to analyze suspicious activities on user devices. It should also capture all the events like user login, user sign details, device details, IP details etc.		
55.	Disable device functionality such as Bluetooth/camera/Cortana/USB.		
56.	Application should be pushed to the enrolled mobile devices automatically based on the profile, user groups etc. and it should also be made available on the work apps play store. Customized apps should be uploaded and pushed to the devices based on the requirement.		
57.	Mobile Application Management solution should have secure Web browser to provide safe access to internal Web-based applications and content.		
58.	The solutions should enable the enforcement of app-level security policies such as data encryption, copy-paste restrictions, and data leakage prevention within managed apps.		
59.	The solution should have secure built-in Per Application Tunnelling and Full Device Tunnelling Functionality.		

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60.	The solution should specify which apps are allowed or prohibited on managed devices to control the app landscape.		
61.	The offline grace period of the device to block access to the application and wipe data for the same through policy.		
62.	The solution should support Multifactor Authentication for tunnel connection with Token based authentication.		
63.	The solution should perform authentication and authorization of bank MDM enabled device before establishing a tunnel connection. The solution should be able to restrict VPN or Tunnel connection access from unauthorized devices.		
64.	The solution should provide real-time device inventory status like Battery, network, of the device Location Information.		
65.	The solution should provide remote management and automatic updates and upgrades for the provisioned TAB devices from a centralized Web console.		
66.	Standard encryption of organizational data on enrolled devices and demonstration of the same needs to be shown.		
67.	Audit Logs of Complete Mobile Device Management suit along with On-Premises setup (tunnelling server) to be stored for 1 year and should be shared as and when required based on the Bank's requirements. Further, logs have to be stored in Bank's premises on a regular basis to ensure that Bank does not lose/miss any logs during the operation periods complying to Bank policy. For maintaining the logs in Bank's premises, necessary storage will be provided by the bank.		
68.	MDM Suite should have the ability to block 3rd party keyboards and applications for all corporate apps based on defined active directory user groups.		
69.	The solution should be recommended by Industry leading mobile OS platform such us Android and Apple and must support endpoint management for the Android and IOS etc.		
70.	The solution should provide offline unenrolment provision in case a device is stuck without internet connectivity using one time password.		
71.	The solution should have the ability to customize multi app Kiosk with predefined restricted settings		

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	access and device specific single use unique unlock code.		
72.	The solution should be able to generate One-time useable device specific Exit codes, unenrollment and unlock code.		
73.	The solution should provide granular & detailed capabilities like Password management, device Restriction, remote wipe & lock.		
74.	The solution should support Secure deployment and management of mobile applications. It should also ensure to enhance end user activity with data protection including compliance with Bank's policy.		
75.	The solution should perform App packaging, version control, deployment, rollback and app removal process.		
76.	It should enforce app level authentication, implement data encryption and containerization. It should also support policy-based access control (e.g., blocking copy-paste, screenshots).		
77.	The solution should support custom configurations per user, group, or department and Geo-fencing, app usage rules, and time-based access control.		
78.	The solution should support real-time monitoring of app usage and performance. It should also support monthly reporting on compliance, app health, and incidents.		
79.	The solution should be compatible with across iOS, Android, and other platforms.		
	MAM		
80.	Proposed solution should blacklist / whitelist /required application lists.		
81.	Proposed solution should support different deployment policies (on-demand, auto-install, VPN configs, etc.) for different groups of users.		
82.	Proposed solution should support application distribution from backend file share or 3rd party CDN server.		
83.	Proposed solution should support multiple VPP tokens and assignment of applications to users.		
84.	Proposed solution should support multiple application erosions (different devices use different versions).		
85.	Proposed solution should auto-configure applications URL/post settings, group codes, e-		

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	mail addresses, license keys) for simplified onboarding.		
86.	Proposed solution should secure applications by integration with SDK.		
87.	Proposed solution should enforce user-authentication before application use (e.g. login with corporate credentials).		
88.	Proposed solution should auto-detect compromised status upon application launch and restrict application use when detected.		
89.	Proposed solution should have AppTunnel - Certificate based secure app-specific VPN tunnel to internal network.		
90.	Proposed solution should have user-level micro segmentation that extends security from the device to the data center.		
91.	Proposed solution should block access to consume Rapp stores.		
92.	Proposed solution should have the ability to scroll through large attachments.		
93.	Proposed solution should have ability to view free/busy status in calendars.		
94.	Proposed solution should have ability to join meetings directly from the calendar invite		
95.	Proposed solution should have Whitelist or Blacklist file types to determine what can be uploaded or synced.		
96.	Proposed solution should share content with peers and external users through secure URL.		
97.	Proposed solution should have password protected shared content links.		
98.	Proposed solution should limit number of downloads for shared content links.		
99.	Proposed solution should assign different content sharing access and editing privileges to users or groups.		
100.	Proposed solution should have the functionality to comment on documents and @tag a user in the comment.		
101.	Proposed solution should provide users with self-service portal to manage their own devices and corporate access (GPS, Policy and Security Management, Compliance visibility etc.).		
102.	Proposed solution should apply privacy settings ensuring sensitive device data is not collected.		

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103.	Proposed solution should have visual privacy app for users to see what admins can access on their device.		
104.	Proposed solution should provide customized support information.		
105.	Proposed solution should provide separate corporate browser for secure browsing.		
106.	Proposed solution should have kiosk mode to restrict browser to a single web application or whitelists / blacklists sites.		
107.	Proposed solution should have Intranet browsing through secure AppTunnel (no device VPN required).		
108.	Proposed solution should enforce security policies (Prevent copy/paste, Data at rest protection (cache, cookies, history).		
	TAB		
109.	The solution should support Android Enterprise Configuration for Android Device Management.		
110.	The solution should support Profile Owner mode onboarding - Anrdoid Work Profile Enrollment.		
111.	The solution should support Device Owner mode onboarding - Android Work Managed Enrollment - QR Code based and regular enrolment.		
112.	The soulition should be capable of integrating with APNS for Apple-iOS device enrollment		
113.	Enrollment should be allowed with Active Directory Accounts & MFA		
114.	The solution should be capable of enforcing Enrollment Restriction to restrict un-authorized device enrollment		
115.	The solution should have a architecture where there is a logical seperation between a group of devices belonging to a particular unit - Similar to how AD has Ogranizational Units.		
116.	The solution should have capabilites to lock a device remotely		
117.	The solution should be capable of performing a full device wipe - reset a device to factory settings		
118.	The solution should support a partial device wipe - an action that would only remove organization specific applications and data from the device		
119.	The solution should offer an option to Clear Passcode if the end-user had forgotten the device passcode		

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120.	The solution should support uploading of Application File apk/ipa files and publish to enrolled devices		
121.	Play Store for Work Integration should be supported to distribute private apps to enrolled devices		
122.	Complete Application Lifecycle Management - Add Version, retire previous version, etc.		
123.	The solution should have a capability to set the device in a kiosk mode with advanced kiosk management options. The kiosk should support configuring single or multiple applications within the home screen based on the department and the role of the enrolled user		
124.	Device Passcode Policy has to be enforced centrally from the platform to all devices.		
125.	Device Restrictions should be configurable depending on user personas		
126.	Android OS Updates Control - capability to defer Operating System Updates on the enrolled device.		
127.	Role-based Access Control - Administrators should only have access to the group/container of devices which they are authorized to access.		
128.	The solution should support sequencing of resources on enrollment. The organization should have the capability to control the delivery sequence of device confgiuration , application and other resources targetted to a device.		
129.	The solution should support user-persona based resource delivery. If an user from a particular department enrolls a device, only resources targetted to that department should be delivered that too in a sequential manner as configured on the platform.		
130.	The solution should be capable of integrating with other Identity Management platfroms for administrator login and device enrollment authentication.		
131.	The solution should have in-built MFA capabilities. Enrolment users and administrators should be able to use e-mail OTP as a second authentication factor for device enrolment.		
132.	The organization should have an option to allow or deny access based on the device posture which includes but is not limited to device		

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	enrolment status, OS version, encryption, installed applications etc.		
133.	The solution should support configuration of compliance policies based on device details . The configured compliance policy should mark devices as non-compliant and have further actions available to block access to applications and organization data. It should also have a capability to notify an user over an e-mail or a push notiifcation with steps to get the device back into compliance.		
134.	The solution should have a complete certificate management lifecycle for identity certificates . Enrolled mobile devices should be able to request for new certificates. Certificates should be revoked when device is un-enrolled or if the device does not report back the status of the installed certificate.		
135.	Solution should support detection and blocking of rooted devices		
136.	Solution should support controlling permission for native device functionality - like access to camera, locations, contacts etc for applications		
137.	The solution should have a single license model which supports all mobile operating systems like iOS & Android etc.		
138.	The OEM should have a customer support organization locally based out of India		
139.	The solution should be hosted in India.		
140.	The solution should provide Day Zero support for new versions of mobile Operating systems like Android and iOS etc.		
Data Protection (will be applicable for all device/solution)			
141	Application to Encrypt data at rest and in transitusing AES 256 or higher encryption standards. Application to support data classification and ensure data residency as per RBI and NCIIPC mandates. Application to support data loss prevention (DLP) controls.		

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	Application to utilize tokenization or anonymization for Personally Identifiable Information (PII).		
142	**Backup and Recovery:** **a.** Regularly back up data and configurations in compliance with business continuity requirements. **b.** Test the restoration process quarterly		

Date: _____
Place: _____

Signature of Authorized Signatory
Name of Signatory:
Seal of the Organization:

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Annexure 15 – Undertaking for compliance of onboarding checklist.
(undertaking on bidder's letterhead)

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Sir,

We, M/s_____ hereby undertake that if we are selected as the successful bidder for award of contract, we shall submit the following information at the time of signing of SLA, NDA with the Bank:

S. No.	Particulars
1	Company Name (To be Filled)
2	Registration Number / GSTIN (To be Filled)
3	Legal Entity Type Ltd Co, Trust, LLP, PLC, Registered Partnership etc.
4	Main Products or Services Offered
5	Date of incorporation
6	Country of incorporation
7	Is the company registered as MSME ? (Yes / No / Applied) If Yes, please provide the Udyam Registration No.
8	Is the company registered as Start Up with DPIIT? (Yes / No / Applied) If Yes, please provide the Unique Startup Recognition No.
9	Category of the Supplier (Only in Case of MSME / Start Ups):
10	Supplier is both MSE & Class-I local supplier.
11	Supplier is MSE but not Class-1 local supplier.
12	Supplier is not MSE but is Class-I local supplier.

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13	Supplier is neither MSE nor Class-I local.
14	Turnover for any 3 years out of last 4 financial years
15	Net worth of the Company
16	Profits of the any 3 years out of last 4 financial years
17	Are there any ongoing or past court orders / cases / litigations for Financial Crime reasons against the company or any of its directors / partners basis the market information, news, article available on net.
18	Has the company ever been categorized as a willful defaulter?
19	Is the company debarred OR blacklisted by Government of India OR any Regulators
20	Is the Company Or its directors / partners / owners booked under the Prevention of Corruption Act, 1988
21	Is the Indian Penal Code or any other law for the time being in force, for causing any loss of life or property or causing a threat to public health as part of execution of a public procurement contract against the Company Or its directors / partners / owners
22	Are there any past or ongoing litigations against the vendor ?
23	Is there any negative news or reviews against the vendor ?
24	Does the vendor has any existing relationship with the Punjab National Bank? (Yes / No)
25	If Yes, provide a brief description of the ongoing projects / contracts .
26	In Case, the existing project is critical in nature, then the overall exposure of the company as against the bank to be checked to assess the element of concentration risk.
27	Assess the geographical locations of the significant customer base of the vendor.
28	Assess the geographic footprint of any third parties (suppliers, introducers, sub-contractors)?
29	Nationality of the Directors / Partners etc.
30	% Share of Each Director / Partner
31	Does the management of the company have any political exposure?
32	Is the company CMMI certified? (Yes / No) If Yes, please specify the certification.
33	Is the company ISO 9001 certified? Standards for Quality Management Systems. (Yes / No) If Yes, please specify the certification
34	Is the company ISO 14001 certified? (Yes / No) If Yes, please specify the certification.
35	Is the company ISO/IEC 27001 certified? Standard for information security management systems (ISMS) (Yes / No) If Yes, please specify the certification.
36	Any Other Company Certification

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37	Signing of Pre-Contract Integrity Pact
38	Obtaining Ernst Money Deposit (In Case of onboarding via RFP)
39	To be valid for a period of 45(forty-five) days beyond the final bid validity period.
40	Obtaining Performance Bank Guarantee / Performance Security
41	Obtaining Board Resolution Copy with Authorization Letter/ Power of Attorney
42	Signing of Non-Disclosure Agreement
43	Signing of Integrity Pact
44	Manufacturer (OEM) Authorization Form (MAF) (In case of product procurement)
45	Certificate Regarding Land Border Clause by Vendor (OEM)
46	Certificate Regarding Land Border Clause by Vendor (Authorized Partner, SI, Vendor)
47	Signing of Proprietary Article Certificate (PAC) (In case of product procurement)
48	Undertaking for being the OEM of the Offered Product (In case of product procurement)
49	Signing of Service Level Agreement
50	Payment Schedule
51	Delivery Timelines
52	Inclusion of Service Level Penalties associated to:
53	Delivery Timelines
54	Resource Availability
55	Implementation Timelines
56	Application Downtime
57	Liability of the regulatory Penalties to Punjab National Bank
58	Clauses pertaining to
59	Liquidated Damages
60	Indemnification
61	Force Majeure
62	IP Rights
63	Transition Management

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64	Clauses pertaining to Rights of RBI OR person(s) authorized by RBI or Regulatory bodies or Punjab National Bank for assessment of vendors or their sub-contractors:
65	Books of accounts
66	IT infrastructure
67	Applications
68	Data
69	Any other necessary information given to, stored or processed by the vendor and/ or its sub-contractors on behalf of / for Punjab National Bank.
70	Clauses pertaining to Data Security
71	Vendor is prohibited from erasing, purging, revoking, altering or changing any data during the transition period, unless specifically advised by the regulatory bodies OR by Punjab National Bank.
72	Clauses pertaining to Data & Data Security
73	Data Migration (Extraction, Transform & Load)
74	Data Backup
75	Data Retention
76	Data Archival
77	Data Storage (Not to reside Outside India)
78	Additional Clauses
79	Liability & Responsibility of the vendor to the bank for the acts of the assignee/ sub-contractor
80	Source Code Arrangement
81	Exit Strategy / Plan
82	Transition Management (between outgoing & incoming vendor)
83	Compliance with various laws & regulations viz. Data Protection Regulations, Information Technology Act, 2000.
84	Business Continuity Plan
85	Disaster Recovery Plan
86	Escalation Matrix
87	Training Plan
88	Purchase Order Issuance
89	Review & Assess the Financial Audit Reports of the Vendors or its subcontractors:

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90	Audited Balance sheet
91	Audited Profit & Loss Statement
92	Annual Reports
93	Review of expiry of Vendor's or its sub contractor's Certifications:
94	CMMI Certification
95	ISO 9001 Certification
96	ISO 14001 Certification
97	ISO/IEC 27001 Certification
98	Any Other Company Certification
99	Review the internal / external audit reports of the vendors or it's sub-contractors.
100	Review the change in the geographical locations of the significant customer base of the vendor.
101	Review the change in the geographic footprint of any third parties (supplier, introducers, sub- contractors)?
102	Are there any new litigations against the vendor ?
103	Is there any negative news or reviews against the vendor ?
104	Debarment / Blacklisted Status by any of the regulatory bodies etc.
105	Performance Evaluation of the Vendor
106	Internal Audits of the Vendor's project (Details as per Audit Policy can be added below)

Date: _____
Place: _____

Signature of Authorized Signatory
Name of Signatory:
Company name:
Contact No:
Email:
Seal of Company:

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Annexure 16 - Manufacturer's (OEM) Authorization Form (MAF)

(To be provided on the Letter head of the OEM duly signed & stamped by their Authorized Signatory.)

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Sir,

We hereby submit the following: -

We, M/s_____ who are the established and reputable manufacturers of the following equipment/components/devices/solution/services (as per table A below) having factories at _____ do hereby authorize M/s_____(who is the vendor submitting it's bid pursuant to the Request for Proposal issued by Punjab National Bank) to offer their quotation, negotiate and conclude a contract with you against the above bid invitation with our products.

Table-A

SL No.	Solution/ Component/ Software/services Name	Model No./ Version No. and Release Date	Software/ component/ services/ licenses confirms to all the technical specifications and requirements mentioned in this RFP (Yes/No)

(Add as many rows as required)

We hereby extend our guarantee and warranty as per the terms and conditions of this RFP and its subsequent Corrigendum and/or Clarifications, if any, and the contract for the equipment/component/solution/device and services offered against this invitation by the above-mentioned Bidder. In case of default/non-compliance of the IT asset supplied

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including hardware / software as per the RFP requirements during the contract period, we agree to replace the IT asset including hardware / software supplied with new one in accordance with RFP requirements. We also hereby undertake to perform the obligations as set out in the RFP in respect of such equipment and services.

In case the bidder i.e. M/s _____ is not able to perform the obligations as per RFP during the contract period (like if bidder ceases to exist from the ICT Industry, stops services or support to the Bank, terminates contract due any reasons with Bank or due to any other reason), we will perform the said obligations, as per given scope of work of RFP, either directly or through mutually agreed third party/any other authorized Partner of ours.

With reference to all the components/parts/assemble/software used inside the company products being quoted by us vide your tender cited above, we hereby undertake that all the components / parts / assembly used inside the company products/software shall be original new components / parts / assembly / software only and that no refurbished, duplicate, second-hand components, parts, assembly are being supplied.

Date: _____
Place: _____

Signature of Authorized Signatory
Name of Signatory:
Designation:
Email ID:
Contact No:
Seal of Company:

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Annexure 17 - Undertaking for Being the OEM of the Offered Product

(To be provided on the Letter head of the OEM duly signed & stamped by their Authorized Signatory.)

To
The Assistant General Manager
CPPD, Head Office
Punjab National Bank
5 Sansad Marg,
New Delhi 110 001

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Sir,

We, M/s_____ are the OEM of the devices/components/solution/services (as per Table A) having factories at _____ do hereby offer our quotation against the above bid invitation with our products.

SL No.	Solution/ Component/ Software/Services Name	Model No./ Version No. and Release Date	Software/ component/ services/ licenses conforms to all the technical specifications and requirements mentioned in this RFP

(Add as many rows as required)

We hereby extend our guarantee and warranty as per the terms and conditions of this RFP and its subsequent Corrigendum and/or Clarifications, if any, and the contract for the equipment/component/solution/device and services offered against this invitation. In case of default/non-compliance of the IT asset supplied including hardware / software as per RFP requirements during the contract period, we agree to replace the IT asset including hardware / software supplied with new one in accordance with RFP requirements. We also hereby undertake to perform the obligations as set out in the RFP in respect of such equipment and services.

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With reference to all the components/parts/assemble/software used inside the company products being quoted by us vide your tender cited above, we hereby undertake that all the components / parts / assembly used inside the company products/software shall be original new components / parts / assembly / software only and that no refurbished, duplicate, second-hand components, parts, assembly are being supplied.

Date: _____
Place: _____

Signature of Authorized Signatory
Name of Signatory:
Designation:
Email ID:
Contact No:
Seal of Company:

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Document Checklist

REG.: Request For Proposal (RFP) for Procurement of 25000 Cloud Based (SaaS) User licenses for Mobile Device Management (MDM) Solution with Mobile Application Management (MAM).

Sr. No.	Annexure/ Document name	Document require from	Compliance (Yes/No)	Page No.
1.	Certified copy of the latest Board Resolution in favor of Authorized Person(s)	**Bidder**		
		OEM(s) if applicable		
	Signature of authorized person duly authorized by the Company Secretary/ Director along with validity of the authorization as per Annexure - 13	**OEM(s)**		
	Power of Attorney (preferably in Original), if applicable.	**Bidder**		
		OEM(s)		
2.	Proof of EMD	Proof of EMD submission/ Bank Guarantee in Original as per **Annexure 8**		
3.	Copy of Certificate of incorporation	**Bidder**		
4.	Annexure 1 – Undertaking from the Bidder	**Bidder**		
5.	Annexure 2 – Eligibility Criteria	**Bidder**		
6.	Annexure 3 – Bidder's Information	**Bidder**		
7.	Annexure 4 – Performance Certificate	Respective Organization		
8.	Annexure 5 – Litigation Certificate	Certificate from CA		
9.	Annexure 6 – Turnover Certificate	Certificate from CA		
10.	Audited Financial Statements for the FY- 2022-23, 2023-24, 2024-25	**Bidder**		
11.	Annexure 7 – Performa for Integrity Pact	**Bidder**		
	Integrity Agreement	**Bidder on Stamp Paper of appropriate value**		
12.	Annexure 14 – Technical Specification of the MDM license	On Letterhead of OEM and signed jointly by OEM and Bidder both.		
13.	Annexure 16 - Manufacturer's (OEM) Authorization Form (MAF) OR Annexure 17 - Undertaking for Being	OEM(s)/OSD(s)		

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	the OEM of the Offered Product			
14.	Annexure 12 - Certificate Regarding Compliance to Land border Clause	**OEM**		
15.	Annexure 13 – Authorization Letter for Authorized Signatory if applicable	**OEM**		
16.	Certificate of Local Content as per annexure 10	**Bidder/CA Certificate**		
		OEM(s)		
17.	Any other document as stated in this RFP			

*** Modification to any of the contents of the Annexures may result in disqualification of the Bid.**

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Dos and Don'ts for Bidders

Sl.	Do's	Don'ts
1.	All pages are to be serially numbered, signed and stamped by the bidder.	Do not paste the image of signature on the documents.
2.	Integrity Pact is to be duly stamped and signed by the bidder. The scanned copy is to be uploaded on GeM portal and original copy to be submitted to Bank.	Don't overwrite or erase or make any ambiguous stipulations.
3.	All third-party documents are to be thoroughly stamped signed by the authorized signatories of OEM (where applicable) and countersigned by bidder authorized official.	Don't change the format/wordings of the RFP.
4.	Only technical and eligibility related documents to be submitted in technical bid.	Don't submit the financial /commercial rates with the technical bid documents.
5.	Ensure to submit the EMD as per the format. In case of exemption claimed suitable acceptable proof of exemption is to be submitted. The scanned copy of the EMD have to be submitted along with bid documents online. Hardcopy of the EMD to be submitted to the Bank at the time of bid submission.	Don't make any changes to the contents of the documents while uploading, except for filling in the required information. Otherwise, the RFP shall be rejected as nonresponsive.
6.	The tender should be put in an envelope which should be sealed. The envelope should bear the superscribed number and date of opening of the tender. (If applicable)	Don't deliver the tenders after the due date and time of bid submission under any circumstances.
7.	Literature or any other technical documents which are required to be submitted along with the tender or which are necessary for its proper evaluation must be submitted along with the tender	Don't miss to submit signed, stamped Annexures and Schedule of the tender form at the appropriate place on the GeM Portal/Office.
8.	Over-writing's, Erasures, cuttings etc. must be scrupulously avoided and invariably attested	Never miss to send tender fee and earnest money with the tender, if applicable.
9.	All pages of the tender form, forwarding letter, and other enclosures must be signed and stamped. The name and designation of the signatory must be legibly indicated.	

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